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Loudoun County Board of Supervisors, Business Meeting, Tuesday, May 5, 2026

Date Tuesday, May 5, 2026
Place Board Room, First Floor, Government Center, 1 Harrison Street SE, Leesburg, Virginia
Length 6h 26m (video)

- Official meeting video (county, Granicus): <https://loudoun.granicus.com/player/clip/8174>
- Meeting page (Granicus): <https://loudoun.granicus.com/player/clip/8174>

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Speech-to-text: whisper.cpp, model large-v3-turbo. Produced 2026-10-09. Each paragraph starts with its time [HH:MM:SS] in the meeting video.

[00:08:12] Good afternoon, supervisors. Good afternoon, staff, and good afternoon, Loudon. I'd like to call the order the May 5, 2025, Loud 26. Sure, let's just start the night like that. Loudon County Board Supervisors Business Meeting. This room has a hearing loop.

[00:08:28] If you need a hearing assistant, please switch your hearing aid to the telecom mode. If you have a headset, we have those available as well. If you need one of those, please see the clerk to request one. Would everyone please join me in the Pledge of Allegiance? I pledge allegiance to the flag of the United States of America and to the republic for which it stands, one nation, under God, indivisible, with liberty and justice for all.

[00:08:58] I expect Mr. Kirshner to be here soon, and I also expect Mr. Letourneau to be here soon. They're probably both coming from work. As far as I know, they will both be joining us. Mr. Turner is on a business trip, and so we're not sure if he's going to make it or not into the meeting virtually, but he's going to try.

[00:09:21] And so I'm going to go on and read the remote participation information just in case he can make it, and we certainly hope he will. Pursuant to Virginia Code Section 2.2-3708.3 and the Board's Rules of Order, Vice Chair Turner requested to participate in this meeting by electronic communication.

[00:09:40] A physical quorum of the Board of Supervisors is present in the boardroom and the Board has made arrangements for the voice of Vice Chair Turner to be heard by all persons in the boardroom. He made this request within the required timeframe and the county attorney deemed that the request meets the qualifications to participate remotely.

[00:10:00] The Board will record in its minutes that Vice Chair Turner participated from a private location outside of the Commonwealth of Virginia due to personal and business reasons.

[00:10:15] We do have a couple of additions and deletions to the agenda. When I get to one of them, I'll make the motion, and if somebody could second the motion, it'd be great, and I can explain it inside of the motion.

[00:10:32] Item four, the high voltage direct current transmission infrastructure study proposal has been deferred to the June 2nd, 2026 Board of Supervisors Business Meeting. I'm going to add a closed session tonight. It's item, it will be closed session item number three. It is to consult with legal counsel and staff members or consultants pertaining to actual litigation involving the Aspen the Golden application that is at this time before the state corporation commission. And I would like to add an item to tonight's agenda, invasive

[00:11:09] plant species management program. The purpose of this is just to extend the cycle. And so I'm going to ask right now, I'm going to make a motion right now to suspend the rules.

[00:11:24] Thank you, Mr. Turner. So I want to be real clear that this motion tonight that we're going to add to the consent agenda is not a BMI item that discusses the soil and water or the invasive species program. That will happen on May 19th if it needs to happen.

[00:11:48] This is because the grant will run out on May 8th, and if they're going to be able to have any further discussions, then they have to do it, they have to extend the grant. So So this is not, I know we received an email today from soil and water and I will call the gentleman on break or later on, but this is simply to extend the date so the discussions can happen.

[00:12:09] This is actually not the discussion about the BMI that Mr. Turner is going to bring on May 9th. This is just extending the grant date. The grant otherwise expires on the 8th. So that's all this is because he couldn't be here tonight. He couldn't bring the BMI tonight.

[00:12:25] So that's all we're doing right now. So on the motion to suspend, Mr. Zane seconded the motion. Any other discussion? All in favor say aye. Aye. Any opposed? Okay. You're going to abstain. One, two, three, four, five, and five, one, three, five, one, three, right?

[00:12:46] Yes, five, one, three, with Mr. Croney abstaining and my other three colleagues not being here. Mr. Rogers. Oh, hi, Mr. Rogers. Mr. Rogers. Hello, Madam Chair. I wanted a point of clarification. The closed session tonight, it's the Mars to Golden case that's pending before the State Corporation Commission.

[00:13:05] Oh, okay, thank you. What did I say? I said Aspen to Golden? Yes. I did say that. I apologize. Thank you. Okay, I'm going to move to add number 13 which is the invasive plant discussion to the consent agenda. So I can just read it into the consent agenda with everything else. So that is a motion to add it to the consent agenda. Can I have a second on that motion? Seconded by -- who said that? Supervisor Glass,

on people who say aye. Aye. Any opposed? That motion will pass 6-0-3. All right. And now I will read the proposed consent agenda. It is as follows.

[00:13:42] Item R1, Proclamation to Recognize Lyme Disease Awareness Month in Loudoun County. That's for approval and presentation. As the vice chair is not here, I will ask the next in line and board leadership. Ms. Briggsman to join me down front for that. Item R2, proclamation to recognize May 3rd through 9th is Correctional Officers Week in Loudoun County. That's also for approval and presentation. If he is on the dais by the time we do that, I'm going to ask Mr. Kirshner to join me down front for that proclamation. Mr. Kirshner happens to be the attorney for the Police Benevolent Association and their unions, so I'm going

[00:14:21] ask him to join me down front for that. Item R3, proclamation to recognize May 10th through 16th as Police Week and May 15th as Peace Officer Memorial Day. Again, I will ask Mr. Kirshner to join me down front for that if he is here. Item R4, proclamation to recognize May 17th, 2023 as Emergency Services Medical Week. As for approval and presentation, Ms. Brixman, if you will join me for that as you are next in line in board leadership. Item R5 resolution to

[00:14:55] commend the knit and crochet club group of the Cascades Senior Center. That sounds so lovely. Ms. Brickson will join me down front for that. Item R6 is the May 2026 as historic preservation month. Ms. Glass will join me down front for that. Just give me a second. And bike to work day is only for approval, R8, Declaration of Professional Municipal Clerks Week. We're going to do that in

[00:15:29] just one second. Mr. Hemstreet's going to join me down front for that. Otherwise, we have appointments and confirmations, administrative items report, zoning of certain properties under the 1972 zoning ordinance, a response to board member initiative, Ashford Metro Station Area transportation study and the invasive species management program that is the consent agenda is there a second on the consent agenda I'm seconded by seconded by mr. Sains discussion on the consent agenda miss Brickman thank you madam chair I do want to make note that the two proclamations I have on the agenda

[00:16:07] tonight will be presented off-site so if anyone would like to join me on May 15th i will be presenting the bike to work day proclamation with the loudon commuter services folks and that will be at the sterling roritan club between 7 30 and 8 and also really excited about presenting the proclamation to the knit and crochet club at cascade senior center they have donated so many items um to those who are in hospital um and recovering and i'm i'm excited

[00:16:44] that uh we get to do that i think it's friday thursday or friday all right thank you madam chair anybody else mr crony uh so i just wanted to make the statement that i i did we did get a letter from Loudoun Soil and Water Conservation District opposing the extension to May 31st of the grant program. So I don't, I'm happy to put it on consent, but I don't know that I'll be supporting the BMI. I would like to know what Loudoun Soil and Water Conservation

[00:17:17] District, what are the issues with, you know, with the extension. And I need to get more information so i just want to say i did i did receive that letter and um i i do hear them so thank you i think we all look forward to hearing what they have to say and and the extension will allow us to do that that's why we're doing the extension so we can have hear what they have to say that's the point of the extension anything else all right for the consent agenda all in favor say aye any opposed okay supervisor before i go on because that that would pass 603 before i

[00:17:55] go on, let me say, with the exception of Ms. Umstead, all of us were on this dais last night until 1245. We are tired. Most of us were back up this morning as early as 6 a.m. No one, I think, was up later than 8. We're tired, and if we're going to get through this fairly hefty meeting, I'm going to ask that you all keep the talking to a minimum if you don't need to, and the chattering to a minimum. I'm also going to ask that we give one another a break because we're tired, and it would go faster if we do all those things, okay?

[00:18:31] Okay, my voice for a call, not my voice for a call, not yet, I'm sorry, hold up, hold up, not yet, not yet. My organizational updates. On the 23rd of April, we did the Leadership Greater Washington cohort. It was at the campus in Maryland.

[00:18:50] It was Public Safety Day for Leadership Greater Washington. And we donned the clothing of firefighters and did, you know, some of the very, you know, a very small amount of the things that firefighters do. I can tell you, you know, I've always had so much respect for all of our first responders, I would say spending just, you know, literally three hours in the clothing itself, which was incredibly heavy out in the sun, trying to drag the 140-pound man out of the burning building.

[00:19:31] He didn't make it. He did not make it out with me dragging him. But the most surprising thing was trying to hold on to a fire hose that wasn't even going at full force. I mean I literally couldn't do it, so it was a very interesting experience.

[00:19:53] So the first half of the day was spent talking about and kind of experiencing what our first responders who are firefighters do, and the second part of the day was the first responders who are law enforcement and having those experiences. We were all asked to do a ride along of some type, I've done many many ride alongs already with both law enforcement and firefighters, and so I need to do another one, but I've done many ride-alongs already. But I will say, no kidding, my appreciation for first responders has always been very high, and it is at this point stratospherically high because, you know, it is amazing how much they do every day. Okay. I also want to say

[00:20:33] that last week, Ms. Bricksman, the finance chair, joined me and the staff, all of our really amazing staff, and we completed our three credit rating meetings. Right now, we do have a triple AAA credit rating, and we believe we've done everything because of the really, really great leadership of Mr. Hemstreet and the finance staff, Buddy Reiser, and all the investments to keep that triple AAA. We will get the information back on somewhere between May 11th and May 19th. We'll get the rating agencies back. They're always interesting,

[00:21:10] three agencies ask different questions. I'm always a little surprised because it's not just how are your numbers and what your debt capacity. There's always some different things every time that you just don't expect at all. And it's very, very interesting. It's very gratifying. And I'm always so grateful for staff. And I know that -- and we are told that our finances are in just excellent condition, and that's really not about the governing body.

[00:21:43] That's really about the staff. They just do a phenomenal job. So thank you, Mr. Hemstreet, and thank you, host staff. And now I will go to my voice for a cause. My voice for a cause this evening is the Loudoun Nature Conservation Project. The Loudoun Nature Conservation Project is a student-led nonprofit working to advance sustainability and ecological health across Loudoun County through local cleanups, habitat restoration, and outreach event.

[00:22:09] Loudoun Nature Conservation Project works to restore the ecosystem and build a lasting culture of environmental responsibility in Loudoun County. We have two of the attendees who helped found it. I'm gonna let them introduce themselves, and I have a couple of questions to ask you. - Hello, my name is Enzo.

[00:22:25] I'm one of the current presidents of Loudoun Nature Conservation Project, as well as the president and founder of the NVCC branch. - My name is Nawaf Shehzad. I'm also one of the co-presidents for the Loudoun Nature Conservation Project, and I also helped co-found the Northern Virginia Community College branch.

[00:22:42] That's great. That's amazing. Amazing. So how and why did you, was the Loudoun Nature Conservation Project created? Well, originally it was an idea from our founder, Ryan, as well as his colleagues, Christian and Carter.

[00:22:58] It started off as, I guess, a smaller high school club, but Ryan really saw that he wanted to make an impact in the community. He saw the trash that was around and the impacts that were put on the environment by not only our classmates, but just the community in general. So he decided to make it a non-profit, not only to make the project bigger, but to reach more of an audience and have more credibility, I guess, in the county or in the state. And he truly wanted to make a change through our cleanups, research, and education.

[00:23:30] Wonderful. That's amazing. And I love it that you're young because, truthfully, all the things we do up here, so many of the things that we vote on, you know, it is for you. It is for the next generations, for what you all are doing.

[00:23:46] Why do you think it's really important for young people to be engaged in the issues of environmental stewardship as well as just engaging your community as a whole? So we do think it's extremely important that young people get into environmental conservation within their communities.

[00:24:06] It was one of the main reasons we started the organization and the branches that came with it. And for one of the points is we all know that nature conservation and sustainability is not just something you pick a day and you go and do.

[00:24:21] It is something that you have to live by, and it's something you have to keep as a daily reminder, and you have to learn the lifestyle of it. And so our entire point was that youth getting involved at such a young age will teach them the lifestyle requirements and just give them the perspective needed so that they will live their entire lives within the bounds of environmentalism and sustainability.

[00:24:48] I love that. I love that. It's how you live your life. I love that's amazing. Can you talk about your trash cleanup work and river monitoring studies? Yes, with the river monitoring studies, we used a couple resources with grants and also the Loudoun Nature, Loudoun Environmental Excellence Award that Ryan won last year.

[00:25:09] We used all those resources to start a study at a local stream. We me and Ryan actually graduated from Potomac Falls High School and as we were there for our senior year There was a stream restoration study a lot a lot having to do with Nitrate levels in the water and how it affects the Potomac River and it's great that they're doing a lot of those projects Currently around Loudoun County and the state to help the quality of our Potomac our Potomac River because it is it's a major Source of water and it's

a it has a big impact on our watershed and everything and as well as our cleanups. That is our main currently

[00:25:47] Like project that we use to help towards environmental sustainability we offer it to our whether it be club members community members collaborating with people like keep out in beautiful and other organizations We use that to just get people outside get people together. Because at the end of the day, I feel like building a community around environmentalism and all nature conservation, it makes it easier for people. I feel like it's harder for someone to wake up in the morning and go tackle themselves. And it's nicer if you offer them service hours or offer them a way to connect with people in their community. Because I feel

[00:26:26] like having a sense of community, especially in your county, in your neighborhood, it makes not only environmentalism easier but it just it makes a better community for for everyone there i agree and then i'm going to ask your last first of all everything you said amazing and thank you um and my my last question is where can people find you how can they get a hold of you how do they get more information how do they start to help if they want to yes yes the big question the big question so one of the main one of the main things we have is um our website um loudonnatureconservation.org and we also have social media if you can you can find us at

[00:27:04] loudonnncp on instagram and another thing um for people that do want to help and get involved we have a lot of ways to contact us to sign up on our website and another thing is we're looking we're always looking for new students whether they want to volunteer or just mostly take a lead well what me and enzo have done we've started the branch at northern virginia community college And one of my main jobs is to find students from Loudoun County high schools.

[00:27:32] I recently went over to Independence High School, and we got a couple of delegated students to start their own branch. And currently expanding, I'm working on getting one with Dominion High School right now. And so if you just want to volunteer, that's fine.

[00:27:47] You can find us on the website. But if there's any students out there that want to get involved leadership-wise and want to start their own branch, then contacting us through the website is perfect. - Say the website one more time. - loudonnatureconservation.org. - So you two are the embodiment of the term think globally, act locally, you really are.

[00:28:08] And the fact that you're young and you're getting other young people involved and the fact that you said it's a lifestyle, it's how you live your life, it's fabulous. I do not allow clapping and jeering or clapping in the boardroom very much, but I do voice for a cause and you all certainly deserve a hand.

[00:28:23] Thank you very much. Thank you. Thank you. Mr. Hemstreet, do you have any comments this evening? Thank you, Madam Chair. I have three comments for this evening. The first is that nominations are now open for the Full Accessibility and Inclusion Moving Toward Equity, or FAME Award.

[00:28:43] The annual awards program, sponsored by the Disability Services Board, recognizes Loudoun employers who are committed to creating accessible and inclusive workplaces. Nominations will be accepted through June 19th. The nomination form is online at loudoun.gov slash fame awards. Second, the Loudoun County Public Library's annual spring food drive is underway. Through this Sunday, May 10th, all library branches are accepting healthy shelf stable food items such as whole grain, low sugar, and low

sodium foods for distribution by Loudoun Hunger Relief. Details including a list of requested items can be found at library.loudoun.gov

[00:29:20] slash food drive. And then finally, Loudoun Economic Development invites everyone to enjoy the best of what local agriculture has to offer during the Loudon Spring Farm Tour on Saturday, May 16th, and Sunday, May 17th, from 10 a.m. to 4 p.m. More than 40 farms and other venues are participating in the self-guided event. Links to more information, including a tour map, can be found at loudonfarmtour.com. Those are my comments this evening, Madam Chair.

[00:29:47] Thank you, Mr. Hemstreet. Supervisors, because we have some of our amazing municipal clerks who are not going to be able to be here the entire evening or just don't want to be here the entire evening. We're going to go on and do the resolution for Professional Municipal Clerks Week right now.

[00:30:06] And Mr. Hemstreet is going to join me down front for this because he is actually the head clerk of the board.

[00:30:54] So Mr. Hemstreet is going to read the proclamation this evening, but I will say this. You know, I say this all the time, so much of what happens in almost any organization but in county government is from people who don't go get to cut the ribbons and don't go get to do the ground breakings and don't end up in the paper, which might be great actually, don't end up in the paper, but just do every single day, do the hard work of taking care of county employees.

[00:31:22] They're every bit as much public servants as anyone who's ever put themselves on a ballot. They work long hours. They work hard. They work late. They're incredibly gracious people. They're incredibly nice. They're incredibly funny. You start to really, really care about them.

[00:31:40] And every single time you see a meeting, the packages that go out at night, the fact that we get this on, that we're able to webcast this, and all the things you see, all the communication. It's because of the municipal clerks, England, but municipal clerks and so we we really we should we should recognize you more and I know Ginny actually asked me could could she not do this tonight and because she wanted to go home I was like oh no oh no especially you we're definitely doing this tonight and so it is just an honor to work of all of you every single day I'm going to have Mr. Hemstreet read the proclamation and we're going to take

[00:32:20] and make comments if you'd like to, and then we'll take a picture. All right, thank you, Madam Chair. I'll read the proclamation. Whereas the Office of the Professional Municipal Clerk, a time-honored and vital part of local government, exists throughout the world and is the oldest profession among public servants, and whereas the Office of the Professional Municipal Clerk provides the professional link between the citizens, local governing bodies, and agencies of government at other levels, and whereas Loudoun County Administrator Tim Hemstreet delegates his duties as clerk of the board to uh to the board of supervisors to deputy clerk

[00:32:56] jennifer grimmel who manages the clerk's division consisting of amanda logan amanda caballo maria eisenhart stephanie hawkins emma hubengardner alicia terry and andy torres paz and whereas in addition to supporting all board of supervisors and planning commission meetings the clerk division manages freedom of information act requests and the board of supervisors advisory bodies now therefore be it resolved that the loudon county board of supervisors does hereby proclaim may 3 through 9 2026 as professional municipal clerks week in loudon county and

[00:33:29] recognizes the impactful work of the county's municipal clerks does anyone like to have would anyone like to have any comments jenny would you like to have any comments no i would just like to say thank you to the board for recognizing the clerks division and thank you for the relationship that we are so appreciative to have with you to make our lives fun and make the work go easier.

[00:34:06] And thank you, Tim, for being a great leader and for his clear vision for the work of the Clerks Division. And finally, thank you to all the clerks, because without you, this would not happen. And you are incredibly dedicated, hardworking, and I appreciate it.

[00:34:22] Thank you.

[00:34:24] Start off with me not being the sun out.

[00:35:34] okay um mr i mean uh chief pro was was not here when i just talked about my experience as

[00:36:13] uh fire a fighter fighter for four hours um but i can tell you boy do i appreciate even more what you all do right now we're going to do our significant incident report um chief pro would you come down with whomever is coming down with you is it just you do you want to wait i'm sorry

[00:36:32] she went oh is he okay okay okay okay you guys have had a tough day i know hello hello you all

[00:37:32] have had quite a day i know we've been following all day long so we really do we always appreciate you being here but today's been a tough day i know it has yeah thank you madam chair the uh so i'm pleased to be joined by um newly promoted assistant chief micah kiger as well as um assistant chief travis pro congratulations chief kiger thank you ma'am um so as you know in in the

[00:38:07] role of operations chief he will oversee fire rescue and ems and special operations around the county ensuring timely and professional emergency services response starting his fire service career in 1996 chief kiger has advanced steadily holding key leadership positions and earning certifications including nationally registered paramedic and chief chief fire officer he holds degrees in fire science and fire administration and is pursuing a master's in executive fire leadership throughout his service in loudon assistant chief kiger has been instrumental in shaping operational safety

[00:38:46] and staffing goals driving innovation and growth within the ems system and protecting the community through his work in the fire marshal's office i'm eager to collaborate with him in his new capacity as assistant chief. His leadership experience and dedication to service will continue to strengthen our fire and rescue system and improve emergency services for our community. In Chief Kiger's absence from the fire marshal's office, Deputy Fire Marshal Leif Sundberg will serve as the interim deputy of the fire marshal's office, interim deputy chief, and the chief fire official

[00:39:23] for the county. DFM Sundberg is no stranger to leading the fire marshal's office, having served in an elevated capacity on several previous occasions and I have the utmost faith that he is up to the task. This report summarizes operations for our system during the third quarter of fiscal year 2026 and during this period our system responded to 10,323 incidents with approximately 71 percent being EMS related and 29 percent fire related. Reinforcing the

[00:39:59] system continues to be heavily EMS driven while maintaining full fire and rescue capabilities. Call trends show a consistent demand pattern with the common EMS incidents including sick persons, falls, breathing issues, chest pain. On the fire side, alarms, gas leaks, and structure fires remain the most frequent responses to include two working fires in Leesburg today. While many of these incidents are

routine in nature, the system continues to experience increasingly complex calls that require coordinated multi-unit responses.

[00:40:38] Geographically, obviously the highest concentration of calls remain in Eastern Loudon, particularly in the Ashburn, Sterling, and Leesburg areas, which reinforces the continued need for strategic staffing placement and dynamic deployment models to ensure adequate coverage and response times across all areas of the county. Several significant incidents to highlight.

[00:41:00] we responded to a large outdoor gas leak on January 5th that required multiple residential evacuations and extended repair efforts by Washington Gas. On January 8th there was an accidental electrical fire in a patient's room at Potomac Falls Health and Rehab Center in Sterling.

[00:41:18] Fire and Rescue staff evaluated 11 patients with three adults being transported to local area hospitals and one being sent to the MedStar Washington Burns Center for treatment. On March 9th our units responded to a large commercial structure fire at the cuisine solutions campus in sterling sous vide lane the fire involved not only machinery in the facility but also many hazardous chemicals that hampered firefighters hampered and complicated uh firefighting abilities our hazmat team responded to the scene and mitigated the gases and fumes allowing firefighters

[00:41:53] to extinguish the remaining fire heavy smoke conditions required extensive ventilation by crews on scene and the use of our mobile ventilation unit. The investigation, which I think was completed yesterday, revealed an accidental fire loss with dollar loss at \$15 million.

[00:42:16] The cause of the fire was a propane torch inside the building used to perform maintenance. We also had several significant incident, significant residential fires, including electrical malfunctions, unattended candles, or improper disposal of smoking materials that caused an estimated \$2.7 million in property damage. Additionally, there is an increased presence of hazardous materials and battery-related risks, which are adding to our complexity

[00:42:49] of incident management. We do continue our fire prevention and life safety outreach efforts as we kicked off our smoke alarm program last month. Through October, firefighters will be canvassing neighborhoods across the county every Saturday from 11 to 2, providing free home safety inspections, replacement smoke alarms, and fire prevention education.

[00:43:14] Significant progress continues on implementation of recommendations from the Silver Ridge Report. To date, 70 of the 86 recommendations are either completed or actively in progress, reflecting sustained system-wide focus and commitment. Training initiatives represent a major component of this effort.

[00:43:33] Command officer training is currently in final development by our training academy after more than six months of work and will be delivered to all system command officers in calendar year 2026. Completion of this program will satisfy 12 recommendations from the significant incident report.

[00:43:50] Additionally, May Day callback training is scheduled for delivering to all system members in 2026 and will account for the completion of eight additional recommendations. Two critical technology initiatives tied directly to the report continue to advance, most notably the forward-facing staffing roster for career and volunteer providers, as well as a records management system where we'll have all the certifications and credentials for all of our system members, career and volunteer loaded into. Policy development and revision efforts also remain a

[00:44:29] priority. Over the past year, eight policies have been released or revised with at least four additional policies in development and expected to be issued this year. Organizationally, we continue to invest in our workforce with leadership development. During this quarter, 89 personnel graduated from various fire and EMS training programs, strengthening both our career and volunteer ranks. Leadership programs and multi-agency training initiatives are also contributing to improved readiness and coordination

[00:45:02] across the system. There are several key capital projects that are approaching completion including the Round Hill Fire Station which will begin operations on May 14th and development continues on the Leesburg South Fire Station 28 as well as the basic training facility at the Academy. Grand opening celebrations are currently in the planning stages for both the Round Hill and the basic training facility. The groundbreaking for the long-awaited Philomont Fire Station is being held at 10 a.m. on May 13th and I'm hopeful that

[00:45:42] many of you will be able to join us there for that significant milestone for our system and community. Our Board of Supervised current and past have been key in moving this project along and I hope to see you all there. Each of these facility projects are critical to supporting our future growth, improving service delivery, and maintaining system capacity. In closing, please remember the open burning is currently prohibited from May 1 to September 30th, and then details on year-round open burning can be found on our website. Lastly, LCCFRS remains a

[00:46:20] high-performing and adaptable system, of which I'm very proud, but we continue to face increasing demand greater incident complexity and geographic challenges continued focus on staffing deployment and infrastructure investment will be essential to sustaining service levels and meeting future needs along with both assistant chiefs i invite any questions that you may have thank you thank you and before i go to question take a point of personal privilege and say chief kiver um i i actually have watched you cut do a couple of different positions in in in the in the department

[00:46:56] and you have been excellent. I will say uh your work in the Silver Ridge um accident was um it was it was I watched you talk to the neighbors. I watched you walk down the street. I watched you take time with each and every person you spoke to. Um you were you were efficient, effective, and so compassionate during that whole time and I I was I got to watch you do that and so i am i'm great to have you in this position but no matter what position you've been in you've just been you've been phenomenal so congratulations thank you very much madam chair i also think you

[00:47:35] still look 25 years old but that's that's that's i will absolutely take that throughout all of my positions i promise you thank you thank you very much all right questions or comments and by the way um animal service could you come to the table real quick for it i'm gonna have a couple questions for you once we get there. Questions, Ms. Umstuck. Thank you, Madam Chair. Chief, you mentioned an increase in hazardous materials causing fires. Could you go into a little bit more detail?

[00:48:07] What kinds? Residential, commercial? So the good thing is I have the former chief fire marshal to my right but the lithium ion batteries continue to present challenges and related to that is you know when they're charging whether or not they're you know small devices like phones and scooters or bigger things like cars but if you want to expand you're welcome to sure

[00:48:40] so these devices are everywhere I mean looking in front of us I know that we've probably got five six or even more devices in front of us and and the thing is with lithium ion batteries is you have to

follow the manufacturer's recommendations with it that is that is the standard boilerplate recommendation anytime that you're dealing with it but where we are finding it is if somebody you know if it's damaged or just improperly charged for example is anytime you're charging a device it needs to be on a non-combustible surface. We've seen them where

[00:49:20] people have had them on beds or laying on couches and things like that. Unfortunately with lithium-ion technology is once it goes into thermal runaway it doesn't stop and that is the concern with it. Some of the extended on-scene times that we've seen with fire and rescue personnel is that after the fire is out we still have to do something and treat these as hazardous devices.

[00:49:45] So with that is it comes into part two, so to speak, with having to properly dispose of those materials so that they are no longer a threat or a hazard. So there are parts and pieces in order to ensure that after the emergency, the emergency is stopped and we're not transferring the emergency to somewhere else.

[00:50:09] So that is the main concern with it. Specific to the sous vide incident or the cuisine solutions incident is I was aware of some concerns on the front end where they thought that the hazardous materials were the cause of that incident.

[00:50:25] I can tell you, especially as it was released today through the fire marshal's office, that that investigation concluded that was not the case and any hazardous materials released that occurred was because of the fire and not the cause of the fire.

[00:50:41] so hopefully that addresses uh the two questions that you had ma'am thank you so much welcome i didn't get that either mr saints thank you thank you everybody for being here in your presentation the work that you do day in and day out for our county um so i'll pick up because you kind of confused me there with your your last statement about the uh the cuisine solutions um because correct me if i'm wrong this is the second year in a row now where we've had a major incident at that location? Are we working on an improvement plan with them, or is there some fines that will

[00:51:18] hopefully get them in order? What are we doing there? Sure. So through the permit process, through the fire marshal's office, they are required to have a permit. They do have an active permit. They do get annual inspections through the fire marshal's office. I have had inspectors out there previously that any issues that have been brought up have been adjudicated.

[00:51:40] So to more directly answer your question is this board has heard me speak in my fire marshal capacity previously where it's education over enforcement. As long as we're moving towards resolution, we were generally okay with that. Cuisine Solutions at Sous Vide Lane was always responsive to any of those inquiries that we had for making any respective changes as it pertained to things under the fire code.

[00:52:06] So with that in mind, I am aware of the hazardous materials release, which happened, I believe, last year. So with that, that was completely unrelated, not necessarily under the purview of the fire code. All right. So it sounds like we're working with them to shore up some things, but I think we need to keep doing something with them because, you know, two years in a row to have two major occurrences there, there's something there, in my opinion.

[00:52:34] And we are, you know, thank the Lord that nothing, nobody ultimately lost their life or major injury because of these two major incidents with that. So and then again, with the lithium batteries, I

know we're seeing more and more combustible fire.

[00:52:50] So there's no the previous fire chief and the previous fire chief before that used to go down to Richmond religiously to try to get some improvement. And so if we continue to do that, please let us know how we can help to change some of the laws and the materials for housing. And maybe it's the lithium batteries.

[00:53:07] Maybe there's something else that we need to do. But we'll be glad to work with you, whatever you guys can think of. And then, Stively, thank you for being here. So in your report, it looks like we have continuous, I guess, inhumane treatment of our animals.

[00:53:25] So I guess it's more or less just more active encouragement and, you know, see something, say something type of thing if you see your neighbor mistreating their pets. But it's kind of disheartening to read some of these stories that are in the reports that we're seeing.

[00:53:41] Is there anything else we can do or try to prevent some of these things? I would say just, as you said, if you see something to say something, our officers respond to over 400 calls to service a month, every month. So we just provide a select listing of particular high-level or felony cases in this report each quarter.

[00:54:01] So this is by no means all of the cases that the department is handling. These are just some of the more significant or noteworthy cases that the team has experienced. So in both of these cases, these were situations in which the animals, there were a number of animals in the home.

[00:54:17] Not an outrageous number of animals, though it was within, you know, sort of typical reasonable numbers. but the animals were not being provided with appropriate care. So we're very grateful to those who did call in and report concerns about these animals. Right now we have a number of other significant class one misdemeanors and felony cases that are currently under investigation that are quite similar to this, honestly.

[00:54:39] So when someone does identify something, we want them to understand that we can assist you if you don't wait a long time. But if your animal is not receiving appropriate care, if you're not going to be honest through course of the investigation, it's going to compromise our ability to provide that animal with services that in some cases could save that animal's life. And yeah, we just rely very heavily on early reporting.

[00:55:03] Okay, thank you. Yes, sir. So, thank you for coming to the table. I appreciate it. It does seem that a couple things are going on this time. It feels like, and maybe I'm just noticing it, that there There are more dangerous what I would just call canine, not dogs, not people's pets, but very often I pick up my phone or somebody emails me or something, and there are more foxes and coyotes.

[00:55:32] I guess they're coyotes. One picture looks like a straight-up wolf. I don't know what's actually. It did. Is that this time of year? And if so, what should people, because I see people kind of like shooshing them out of their yard and that type of thing. Is it just, is it more right now?

[00:55:48] Is it this just the type of time of year that they kind of come out? Yes. We live very successfully among a huge urban wildlife population. So there are thousands of wild animals living under decks and sheds and porches, right in our backyards and urban areas.

[00:56:04] Right in the middle of Leesburg, we've had everything from mink to coyotes right in the middle of town, black bear most recently. So it is very common to have these animals living among us. this time of year, you will see more of them because they are out looking for food. They are nursing their young, they are mating, and they are seeking food to then feed and raise their young with. So coyotes and foxes will typically go and, you know, retrieve food and then bring it back to their dens and then start teaching their young how to hunt. These animals, fortunately, the majority of their diet is actually very small prey. So you're looking at birds, mice, and scavenging. So

[00:56:44] animals that are already deceased. They are typically not a risk to humans. We want them to be afraid of people. So one of the most important pieces of advice I would say is please never ever interact with or feed wildlife because I come from out west where we say a fed bear is a dead bear because the more you teach these animals that people are a source of food, the more likely it is that animal is going to have to be dispatched because it's going to keep coming to people and get closer and closer to the point where it does become a safety risk. So we don't want anything that encourages these wild animals to be interacting with people. Please admire it from a distance, you know, take pictures, but don't put food out for

[00:57:22] them. And honestly, don't put food out for any animals this time of year. Food is abundant. This is a time of year when animals are able to find food successfully on their own. So even bird feeders are a huge source of attraction for bears. But then if you're also putting out your bird feeders, you're attracting mice, which are then providing a food source for foxes, for raccoons.

[00:57:41] so it really does sort of stack up when food sources are provided make sure you're securing your trash cans because you know raccoons will scavenge they know how to open trash cans skunks as well so make sure you're securing your trash that anything tasty or strong smelling is put away barbecue grills can be put in garages um if they have not been cleaned after usage After they cool completely off, I know.

[00:58:04] I'll be on set, I'll be stored, properly cooled down stored, sorry. Thank you, Director Stott. Amongst people who correct that. After they cool completely off, yes. But yes, we discourage any sort of direct interaction with wildlife in order to keep them wild. Okay, all right. So, yeah, so let nature be nature and leave it alone is basically what you're saying.

[00:58:23] Yes, absolutely. Okay, that's very, very, very, I had the biggest fox in my yard. It was beautiful, but it was, I was so surprised because it looked so healthy. Yes. Yeah, so, okay. Okay. Well, thank you all very much. We appreciate it. Thanks a lot for everything you do. Supervisors, I think we can actually get a couple of at least one action item, one or two action items that we don't have anyone signed up to speak on the item. It's too early to do resolutions. We have to wait almost another half hour for resolutions. So I do think we can probably make Carl Rush very happy and do the human rights ordinance and

[00:59:01] then get him out the door he got up really quickly and then and have that one done and there's no one

[00:59:10] signed up to speak on this I did check good evening this is item number six we will take the briefing

[00:59:45] good evening good evening good evening chair Randall members of the board tonight I have with me John Sherwood from our county attorney's office and ACA Chris Quinton I'm here to present on

item six which provides the board with an overview of staff's work today on a potential development of a human rights ordinance for Loudoun County and to seek the board's direction on recommended next steps. So the purpose of this item is to inform the board of the current practices, key issues for

[01:00:24] consideration, and the recommended path forward consistent with the board's strategic focus area for improving diversity, equity, inclusion, and belonging in the county. Staff's recommendation is that the board direct staff to draft a human rights ordinance. That draft will include identified areas of focus, a comprehensive fiscal impact analysis and scalable implementation options designed to accommodate future growth and staffing in the county.

[01:00:49] Given the county's continued growth and evolving need, how would a human rights ordinance or office strengthen our ability to serve our community members and to respond to concerns? Simply put, at the present, Loudoun County does not have a dedicated local process to receive review or help resolve complaints of illegal discrimination which can make it more difficult for community members to navigate concerns related to their civil rights. Establishing a human rights office would create a clear accessible and locally responsive resource for community members and visitors while also providing the board and county staff with a

[01:01:23] consistent framework of addressing concerns raised through public comment or directed from community inquiries with this defined process in place the county would be better positioned to receive and to review and to respond to these matters in a timely manner so by way of background at the 2024 strategic priorities retreat the board identified the adoption of a human rights ordinance as a priority to be achieved by end of term this initiative builds directly on the board's 2023

[01:01:59] resolution of social and racial equity and was formally reaffirmed during that strategic work plan where the board approved on December 3rd, 2024 and a vote of 801. The legal authority for this work is well established in Virginia Code section 15.2-965, which expressly authorizes localities to adopt a human rights ordinance and to establish a human rights office and commission within the jurisdiction covering areas, including housing employment education credit and public accommodations the enabling statute requires that

[01:02:36] any local ordinance remain consistent with and not more stringent than the virginia human rights act noteworthy to this discussion loudon county is currently the only jurisdiction among our four regional comparators that does not have an established human rights program in place the counties of arlington fairfax prince william and the city of alexandria each each both have an ordinance and a standing human rights commission in office. At this time I will pause and I'll allow Mr. Sherwood to talk a little bit about that Virginia code.

[01:03:07] Sure. Mr. Rush, do you know if, because oftentimes we talk about the Washington metro region, we include in there Prince George's County and Montgomery County, have we checked with them as well? So we've checked with Montgomery County and Howard County as well, not Prince storages. We've also looked in our region with Charlottesville as well as Richmond. And they all have one? They all have one. Okay, thank you. In terms of the section of the Virginia Code that authorizes and permits localities to adopt ordinances with regards to human rights,

[01:03:44] there's two subsections to the code. The first subsection is relatively prescriptive on localities that if they are to adopt an ordinance it must be consistent with and no more stringent than and so that

really ties the hand of the board in terms of what types of discrimination that it can be regulated by the ordinance and then also what protected classes can be identified

[01:04:14] The second subsection is where the board has complete discretion over how it describes its or lays out its desire to enforce such an ordinance, including whether or not to create a human rights commission and what the role of that commission is in the enforcement process of the ordinance itself.

[01:04:44] And so that's where the board will really be able to kind of craft its own solution. When we look at our comparator jurisdictions, there is a wide variety between the numerous ones that we've taken in terms of what the role of the commission is,

[01:05:02] whether it is adjudicative, whether or not it is purely advisory, and how an office staffed by the locality staff is organized and what types of activities they look into and the potential subjects.

[01:05:24] Is it something that looks both internally to the locality and its organization, or is it purely regulating the private sector? What is its relationship to the school? You'll see education is on the list of types of discrimination that can be addressed.

[01:05:45] But, you know, there's independent constitutional authority for school boards, So that could be a little, you know, that could be a bit of a minefield if you're going to be looking at attempting to step in and looking at the school division, if there are complaints about the school division.

[01:06:03] So that's really where the board will need to provide guidance to the staff on what the shape of that ordinance is gonna take in terms of your vision for rolling out the ordinance, engaging the community, and then looking at potential enforcement and response to particular complaints.

[01:06:30] - So looking at our comparator jurisdictions, staff conducted a detailed review of our peer jurisdictions across the region and the Commonwealth. Several consistent operational structures emerge from our research. All four of our comparator jurisdictions maintain, as we mentioned, a human rights commission and a dedicated human rights office.

[01:06:49] Staffing levels range from five to 17 FTEs, typically comprising of a director, investigators, administrative support. The common functions across all these jurisdictions included the complaint intake, investigation, mediation, conciliation, as well as community education and the issuance on policy recommendations to the elected bodies.

[01:07:13] Some key distinctions that existed were around the scope of enforcement authority. Some of these commissions were invested with independent investigatory and enforcement powers, including subpoenas and authorities, while others operated more in an advisory role as well.

[01:07:32] We also looked at some of these jurisdictions, also executed work share agreements with the Equal Employment Opportunity Commission and the U.S. Department of Housing and Urban Development. While these agreements can expand community access to local complaint processes and create opportunities even for federal reimbursement for case management, they also carry a risk while federal priorities could shift and budget allocations could shift.

[01:07:59] And these varied from each of these jurisdictions. As staff moves forward into this drafting process, there are several foundational elements that will be researched and analyzed and developed for the borough's future consideration and direction.

[01:08:15] As we mentioned, the Virginia Code establishes the scope of prohibited discrimination. That statutory framework will serve as the foundation for the ordinance. Within that scope, staff will develop options and recommendations for the board's consideration, and mainly in five areas, but not exhaustive to these five areas.

[01:08:36] The first is the structure, whether to establish a human rights commission alongside the human rights office, and if so, what would be that appropriate size, composition, and appointment process for a commission if the board decided to appoint a commission.

[01:08:52] The second is authority. That is whether the commissioner of the office will function in an advisory capacity to the board or an inventory or enforcement powers. The third would be around that complaint process and it would really enumerate what that actually looked like within that process, whether the intake, the investigation, how it escalates, and any type of due process or confidentiality standards.

[01:09:19] The fourth is to the extent in which the county would be willing to pursue work share agreements, which would probably be further down the road from the ordinance as well. And the fifth component, as we mentioned, would be that fiscal impact and scalability. Our peer jurisdictions consistently identified the importance of us building in a phase growth provisions into enabling the ordinance from the outset, particularly given the potential and rapid caseload increase once the program becomes operational.

[01:09:51] Staff will present the board with the detailed options and analysis and recommendations on each of these as part of the draft ordinance item. So at this point, staff requests that the board direct staff to proceed with drafting that human rights ordinance.

[01:10:09] Upon receiving that direction, staff will develop that draft with that identified areas of focus, our scalability implementation options, recommendations of appropriate scope of authority for a commission in an office and concurrently staff will work with the Office of Management and Budget for a comprehensive fiscal impact analysis covering projected costs of personnel, operations, technology, training and community engagement.

[01:10:35] Staff will also conduct individual briefings with each supervisor prior to returning to the full board. The adoption of the human rights ordinance would represent a pivotal step for the county. The board should expect that this will be an iterative process. As an initial step, the board can expect staff to return with an information item outlining a formal work plan for the drafting process and a proposed timeline for board engagement.

[01:11:00] This will provide the board with a clear roadmap of its milestones, decision-making points, opportunities for direction before the draft ordinance is brought forth for action. This effort also advances through a structured and multi-phase process with regular reporting the board with that key milestone. Public engagement will be conducted in accordance with the established county practices and a formal public hearing prior to any board action on the ordinance. As we mentioned the board will have multiple opportunities to engage throughout

[01:11:36] this process until any final action is taken and with that we conclude our presentation. We're open for any questions. Mr. Rush, before I go to questions, you've given us all the briefings or at least

offered us all briefings. But if I'm Jane and Joe Citizen sitting out here right now and I just heard this brief, I don't know that I would still know what a Human Rights Commission does or what it's for.

[01:11:59] And I would maybe think that it's an intra-government department, which that's not what it really is or what it does. Could you give an idea of when a Human Rights Commission would be used and what they do?

[01:12:16] Yeah, so... just an example or so. So the focus of not really talking about a Human Rights Commission in this presentation was the board first has to direct us to ordinance. Human Rights Commission will hear locally cases of illegal discrimination and things like housing and credit, education, all of those things of where they can come to this commission or this office to get some type mitigation of any type of this discrimination before, you know, taking a further legal process.

[01:12:54] I'll also ask Mr. Sherwood to dive a little bit more because he knows the code quite well. So part of what the commission does is, depending of course on the contours of the ordinance, the commission serves both typically in an advisory capacity to the board of supervisors in terms of researching and doing studies of the community and discrimination that's occurring so that the Board of Supervisors understands essentially what the ground truth is in terms

[01:13:29] of discrimination within the county. And then make recommendations to the board about policies, programs, and potential if needed adjustments to the ordinance to address those concerns of the community when it receives a complaint there are it typically when a commission receives a complaint it will have an investigator contact the complainant get a basic understanding of what the complaint is about or what incident or series of incidents drew that prompted the

[01:14:08] person to file a complaint then can then contact potential witnesses and potentially the the person who or organization that has uh allegedly committed some form of or of discrimination and then it would make um make a recommendation on how to proceed that may be conciliation and mediation which is a way for the parties to come to some agreement to resolve what that conflict is or it could be to recommend a further action which may come from the county attorney's

[01:14:44] office or potentially in terms of a similar to a zoning enforcement or building code enforcement violation that requires judicial adjudication in the court. So that that kind of gives us a short version. And so an example that you had asked for an example as well. So if you look in for example when it comes to housing currently right now if there is some type of disagreement between a tenant and their landlord and there's you know they perceive some type of discrimination has taken place sometimes they show up to public comment and they'll mention that to the board

[01:15:23] sometimes they will phone my office or and they'll ask what can they possibly do about that a human rights office and commission would would handle that okay that one i understand thank you um miss thumbs up. I want to thank you, Madam Chair. So, Mr. Rush, I want to thank you for all your work and and the whole team for all your work. And we we had discussed during briefings the fact that this the categories of individuals who may need protection are fairly broad. So you have racial

[01:15:59] categories, religious categories. You have gender categories, sexual orientation, national origin. So I'm hoping we keep in mind all of those categories in addition to race as we go forward. As I've shared with you, I'm a little concerned about taking on additional expenses because I don't know how sustainable that'll be around 2030 that said I'm going to

[01:16:33] support this tonight I appreciate that you're going to do a comprehensive fiscal impact study and then I have one question for you given the current federal administration do we really think that we'll get any cooperation from them in any kind of work-sharing arrangement at this time?

[01:17:02] So the program is set up for that to occur, and so that's what we have to go on at that moment. Just so you understand that those types of cooperative agreements, I mean, that's a decision point for the board to make about whether or not it wants to pursue that.

[01:17:23] And then, of course, there's the development of the agreement with the agency. But what that typically looks like is that for something like the Equal Opportunity Employment Commission is that when they receive complaints related to that area of law, we may receive a portion of them that they ask our investigator to do the initial fact-finding to determine whether or not there's something that could potentially substantiate action by the EEOC.

[01:17:56] And then we would report it back up. The biggest concern would obviously be how big of a portion are we talking that may get referred down from a federal agency given their current staffing circumstances.

[01:18:14] Thank you. And to be clear, not all of the Human Rights Commissions and offices that we've researched actually have that work share agreement. That would be a deciding decision point for the board. Thank you very much.

[01:18:27] Ms. Brixman. Thank you, Madam Chair. And thank you for all of your work on this. I really appreciate it and for the updates. So we will have potentially a Human Rights Office, a Human Rights Commission, and an Office of Equity and Inclusion. So can you describe how those fit together? Like would the Human Rights Commission Office be within the Office of Equity and Inclusion?

[01:18:57] So right now, structure of the office and where it would reside is actually being discussed. So that would be something that we would bring back to the board in the future. Okay, part of what comes back. Okay, okay. And then we have MOUs with, for example, the Commonwealth's Attorney's Office, the Commissioner of the Revenue, the Sheriff's Office.

[01:19:18] So would this then be incorporated in those MOUs so that, say, the employees of the sheriff's department would have access to the complaint system and the remedies for employment? That would need to be determined by the board itself about whether or not the commission would be both internally and externally focused. So for instance, in Fairfax County, part of their office of civil rights does internal reviews. So when there is a complaint of

[01:19:55] some form of discrimination, they take that on. Others don't. So that would be, we would have to make a decision about which model would work best for the county. Currently, our office of, our Department of Human Resources does those initial investigations and our cooperative agreements with our constitutional officers and the library incorporate that because it is part of our personnel regulations that are included, so.

[01:20:32] - Okay, so it remains to be seen whether we would have external and internal that will be recommendations that come back to us? - Yes. - Okay, okay, all right, thank you. I'm happy to support. - Mr. Letourneau.

[01:20:47] - Thank you, so the actual statutory authorities are federal and state, right? So today, if this is happening, you would go to the state attorney general's office or one of the federal agencies or something like that, right? Correct. Is there an indication that that's not effective? Aside from whatever feelings might be in terms of the current administration's level of enforcement anyway, but up to that point. Sure. So the previous Commonwealth, the attorney general of the commonwealth's practice was to, when it received civil rights complaints specifically for the

[01:21:27] Equal Opportunity Employment Commission. It forwarded those complaints to the EEOC. Other Attorney Generals have had an Office of Civil Rights inside their office. It's just that the most recent Attorney General before Mr. James closed that office. And so that was a policy decision. And when it goes to the Federal EEOC, then they investigate and so on. Correct.

[01:22:00] excuse me mr croney oh thank you chair randall and thank you um for the briefing i appreciate that uh the so i'm curious if we were to do um one that looked internally um tell me about laden county public schools you mentioned that that you know if we do education that's probably where that would come from i mean how how would that be with loud and county public schools how how would we work that out? I think that that would require some additional legal research to

[01:22:34] kind of look at where the authorities lie there. But bear in mind that there are other educational institutions in the county that are not part of the school division that could fall within the scope of the ordinance. Okay. And then, so I see it more as external. How many cases do you think we'd have if we were to do external what would you think carl so that that's to be determined um and that's part of the the drafting of the ordinance of how we will scale that and and uh one of the things that that we've we've talked about is being able to have that community

[01:23:13] education piece to be able to see the trends uh within the county i will say our um in fairfax they were somewhere around 450 cases there, but they've been around for a long period of time as well. So we can't determine what that number will be, but as we scale the office, we could get an idea of what that would look like. Do you think we'll need, you mentioned legal counsel, is that like a staff position we might need going forward with the county attorney's office?

[01:23:48] - I think that to answer the first part of your question about what any human rights commission and ordinance might, how it may interact with Loudoun County Public Schools is a question that the county attorney's office would research for you as part of the planning and drafting of the ordinance.

[01:24:11] However, it may be necessary to add a potential add attorneys for the commission itself as well. Right. Okay. Thank you. I used to be chair of Virginia's Fair Housing Board, and it was some of the most gratifying work I've ever done.

[01:24:35] So a couple of things. So let's just say, for instance, it's a housing issue. It's hard to go down and complicate it, and for some people, it's a little scary to go down to the Fair Housing Board in Richmond to present your case and to have this discussion. So it is much more, not just convenient, but helpful and effective and efficient to have something that is in your locality.

[01:25:00] It was also interesting because when I was chair of the Fair Housing Board, the number one and number two issues that people brought before the Fair Housing Board, as they thought were discriminatory practices, were familiar status and disability.

[01:25:16] So people who had children, you know, two, three children, four children, you know, they were discriminated against in getting a home. And then there are so many people who just felt like that the house they were trying to rent, usually it was rentals, was a – there were no accommodations, even though they were newer facilities and there could have been accommodations for people who had accessibility issues.

[01:25:49] And so I do think that when we think of human rights, fortunately or unfortunately, our brains almost automatically go to race or maybe even gender. But if you've ever done any of this work before, and I have, You know, you find that a lot of the issues people deal with, yes, there were race and yes, there were gender, but a lot of it, a lot of it was accessibility, and a lot of it were just other things as well, people who couldn't see, people who could not hear.

[01:26:28] One lady who just had a lot of anxiety, and she didn't know what to do, because she gets an apartment that was on the bottom floor because she was always scared that, you know, something happened. All those types of things that you don't even think about just if you're kind of walking through and living your life. And so I think this is for us not to have it.

[01:26:48] I have a human rights commission. And of course, this is just the ordinance to go out, look at it, come back, bring it back to us and see what we want to do. For us to be the probably only locality in the Washington metro area that doesn't have this is probably an oversight, is what I would call it, and one that we can certainly fix. And I believe that we're going to find that the people who need this, and it may just be education, it may be that landlord

[01:27:23] having education about how he can help that person with an ability issue, make sure they have an apartment. It may just be that. You're going to find that it's going to really benefit the county in so many ways. So there's a motion to be made. It is the main motion, not the alternative motion. I move the Board of Supervisors direct staff to draft a human rights ordinance, including identified areas of focus, scalability options, a comprehensive fiscal impact analysis, and recommendations on the scope of authority for a human rights

[01:28:00] Commission and return to a future board business meeting with a draft ordinance and comprehensive fiscal impact analysis for consideration. Motion made and seconded by Supervisor Bricksman. I do want to thank Supervisor Bricksman who has, and Supervisor DiProni, who has talked about a Human Rights Commission. I also want to say that, you know, it is important that to a question she asked, that these are, this is not the same as, you know, an office on equity, occlusion, and accessibility. Those are different things. And the Human Rights Commission is much more outward facing. It's much more about what the people in the community,

[01:28:39] depending on how we structure an ordinance, what the people in our community are dealing with. If you've been on the board when I first came here, our good friend Tony Buffington always laughs at me because he said the one time I completely flipped my top is when I realized we didn't have curb cuts for people in wheelchairs to get up on the curb.

[01:28:59] You know, because sometimes you don't do the things you think about all the time. I think a Human Rights Commission will make our county a more accessible, welcoming county in every way. And then that could only be a good thing. You will come back to us with what the fiscal impact would be.

[01:29:16] So we can decide when we want to start this. We can start this with two employees and scale it up on what we want to do. This is just simply a go, look, and see. And I believe that this is a good way to do this. This is nothing that's in stone.

[01:29:33] It's like, what do we want this to look like is a good way to do this. Mr. Rush, you are just phenomenal. You really are. Your span of information, I mean, I don't know if I've ever asked you anything. You didn't have to go research it.

[01:29:48] You had the answer. You're just phenomenal. And your awareness of all the issues that could be something that the Human Rights Commission could address is, you know, it is deep.

[01:30:05] Your knowledge is deep, and you are great, and I think this is a very good idea. Does that mean that I replaced Steve Torpy as your favorite? Just wondering. It does not. Touche. Steve's going like this. Steve's office helped me raise my children, so you know, I'm sorry, you know, my children went through Parks and Rec, so you're really good, and you're this close to Steve Torpy, really, really close, really close to Steve Torpy, poor Steve Torpy.

[01:30:40] I love all of our directors equally, just going to say. So this is really exciting. Thank you for all the work on this again. When I was barely a newly minted supervisor, we had our board strategy session at the beginning of the term, and I had this idea that we should add to our vision statement that we will be a county that moves with the idea of being inclusive and sustainable.

[01:31:13] And those words were included in our vision statement that year, and they remain there today. And I think that this is living out that vision statement. My colleagues may remember that in June of 2024, we approved the LGBTQ inclusivity review and applied for the Municipal Equality Index with the Human Rights Commission.

[01:31:35] I brought that forward with Supervisor Glass. in 2024, and I thank the board for supporting that, and one of the things that we knew would happen, you know, despite the fact that we had talked about it at our board strategy session at the beginning of this term as well, is that we would receive less points on the score because we don't have a human rights commission, and that's very, very important.

[01:31:59] I appreciate the chair is always talking about the accessibility and ADA compliance and everything, but also we have to remember the LGBTQ community as well. And it was one of the things that they really highlight and that they really value when they do the MEI index and the score, and we did score an 81 out of 100.

[01:32:17] So we knew that we would do well, but it's not just about the score. It's about how we serve our community, externally and internally with our employees. I mean, in that process, we found one thing we fixed before we even went and did the um the application as i'm sure you recall um so i'm proud of this initiative as i said and believe that staff's recommendation to start with an ordinance and then an office before we get to the commission part is a wise way to move forward

[01:32:52] um and and take it in phases our future human rights office and accompanying ordinance will help residents file complaints such as EEOC or housing discrimination locally and resolve issues quickly, hopefully through mediation, and often faster than if the complaints were handled at the federal level. They can also provide funding and enable tailored education and outreach, which I know you're also doing through your office. And so thank you, thank you very much, and I'm looking forward to the process and you coming back with recommendations. Thank you.

[01:33:28] mr kirchner thank you madam chair and thank you i know i wasn't here for the presentation um i did here a little bit at the end there and thank you guys for putting this together at this time i'm not going to vote yes on this i'm going to explain why briefly um listen obviously human rights are a very very important thing for our community to be engaged in um i kind of feel like a little bit by setting up this office we're kind of looking for a problem or we're looking for a salute we're trying to solve a problem that you know is there is there is there really a problem And we're going to do it with 5 to 17 folks, which is, you know, a significant budget.

[01:34:01] And, again, maybe the budget is going to be much smaller. It's going to be parred down. We don't know until we get this back. I know this is kind of go forth. I also, after reading the item, it's somewhat nebulous to me, honestly, kind of what's our problem? What are we really trying to solve for?

[01:34:16] Just because other counties are doing it, should we be doing it? And so I have some, I think, just general concerns about what we hear. Now, if it comes back and I really like the product and the scope is small and the number of folks is small, then, you know, maybe I can get behind this.

[01:34:32] But, again, you know, we're talking a significant increase in personnel. It's a significant expense. And, really, I don't – and, again, I missed some of the discussion. So, if you touched on it, I apologize. But what's the problem? And just because other counties have it doesn't mean we necessarily have it.

[01:34:48] I mean, as Chair Randall has mentioned many times, we're the greatest county in the commonwealth. Country. In the country. We've moved to country now. It's always been country. I don't know what you're talking about. It's always been country. So will this make us even greater? I'm sure Chair Rendell would say it would, but hopefully I can get behind it when it comes.

[01:35:04] But that is my general concern, cost, scope, what are the problem we are really trying to solve? So I appreciate all your work. Thank you for answering the questions. Thank you, Madam Chair. Thank you. So let me respond to some of the things that have been said. Of course, Ms. Bricksman, I care about people in the LGBT community.

[01:35:24] Of course. And everybody else. The reason I talk about accessibility is because I don't hear anybody else talking about accessibility. And truthfully, accessibility, you can be in the LGBT community and have accessibility issues. You can be in any community and have accessibility issues. I'm surprised how much it's not discussed. So I always make a point of bringing it up. Mr. Kirshner, with respect, I'm surprised that you don't hear about it because I hear about these things all the time, you know, and I just gave, you know, a great example of just curb cuts alone was an issue that we were failing at that.

[01:36:03] I, you know, I remember, you all remember, it's kind of embarrassing, I remember a couple of years back when the cow stepped on my toe, remember that? So I had a broken toe. And so what I learned at that moment was, yes, Chris, a cow stepped on my toe, yes, yes, yes, whatever.

[01:36:21] That's not the point. That's not the point. At the county fair, that's not the point I'm making here. The point I'm making here is I did not realize how not accessible Loudoun was until I was on a scooter and crutches and that type of thing. We have met the minimum accessibility standards.

[01:36:40] Since then, I came back in those bathrooms and how they've been changed and the fact that they opened forward and not out and those types of things was based on my experience of not being, of not having full range of motion. And so sometimes you do not realize what the issue is because it's not part

of your life. It's not part of something you do. There is a, there is a new play place for kids called Rock the Spectrum. It's somewhere where kids who have autism can go and everything there is for kids with autism and, and, and they, they play different, they treat

[01:37:15] them differently. You might not know that and that your kid with autism may need something different if you don't have a kid with autism. So I don't think that we can say it's a problem looking for solution. We don't know what the, you don't know if you are, you know, like so many of us are just blessed enough to not have to need these accommodations in any of the accommodation ways, then it's easy not to see it. And that doesn't mean you don't want to, but everyone has blind spots. And I do think that a Human Rights Commission in general is a message to everyone

[01:37:51] in the county that you matter to us. We see you. We hear you. We want you to be able to function, move around. Whatever you want to do in our county, we want to make this as easy as possible. Thus, a lot of this will be education. And I love that you guys have pushed that so much.

[01:38:13] We don't know that we're going to need 5 to 17 people. We might need two. We don't know until they bring it back to us to know actually what it is, which is all we're doing here today. So I made the motion, seconded by Supervisor Bricksman. All in favor, please say aye. Aye. Excuse me.

[01:38:29] Opposed? Aye. That motion will pass 6-2-1. Is that right? Yeah, with Mr. Letourneau and Kirchner's voting no, and Mr. Turner being off the dais right now.

[01:38:46] Thank you all very much. We appreciate it. Very, very much. We appreciate it. We have a whole lot of resolutions. We have five more to do. The easiest way for me to do them is to have people join me down front in groupings. And so I'll start with Ms. Glass and Mr. Crony, why don't you join me down front for R6.

[01:39:08] And then Ms. Brickspin, why don't you join me down front for one, and I think we're doing two of them. And then Mr. Kirsten, you're joining me down front for all the rest that were police and correctional officers. So Ms. Glass and Mr. Crony, how about we go first?

[01:39:25] You're welcome.

[01:39:41] I've been trying to get a hold of you.

[01:40:24] on both sides and all the sides you look you do you look on all the sides and then um you want

[01:41:18] very good evening everyone let me go ahead with the proclamation we're asked for the last 21 years of the national trust for historic preservation has designated may as historic preservation month to raise awareness about the importance of preserving historic places and resources that connect people to their communities and cultural heritage and whereas this year's historic preservation month theme is all people are created equal and coincides with the 250th anniversary of the signing of the

[01:41:57] Declaration of Independence providing a meaningful opportunity to reflect on and honor our county state and nation's history and whereas the Loudoun County Heritage Register Program was created by the Heritage Commission to highlight the diversity of significant sites in the county and now includes 13 properties across the county east and west and whereas guided by the Heritage Commission and Historic District Review Committee through the implementation of the Heritage Preservation Plan Loudoun County has been a state and national

[01:42:34] leader in historic preservation by working to preserve the beauty and character of the county demonstrating its commitment to historic preservation. Now therefore be it resolved that the Loudoun County Board of Supervisors does hereby proclaim May 2026 as Historic Preservation Month in Loudoun County where we celebrate the role of history in our lives and the contributions made to preserve the tangible aspects of the heritage that

[01:43:06] has shaped us as a people. I would wanted to know who would like to speak first. I'm looking at you. Yes. I'm Donna Bohannon representing the Black History Committee Friends of the Thomas Bolch Library and we are being recognized for our partnership with the county in recognizing and identifying African

[01:43:44] American resources. This is a long-standing partnership that started over 20 years ago when the first survey of African American resources was produced and then about a year or so ago we updated it. So again it's a it's a privilege and a pleasure to have a county and a partnership that allows us to preserve important historical resources.

[01:44:24] We were both staring at you. When do I pass up a chance to say something, really? I just want to thank the Board of Supervisors for their support for the preservation work that both the staff. I want to recognize that we have a historic preservation team in the Department of Planning and Zoning in our community planning division that works very hard to identify, protect, preserve, advocate for the resources we have in the county.

[01:44:53] So I wanted to recognize all of the staff, but also all of our partners who keep pushing us to do better and the Board of Supervisors who supports us. Thank you. I have a favor to ask you all. No joke favor. So this year's State of the County follows the American 250 theme, and the name of the speech is Loudon's American Story.

[01:45:15] And I always do a slide show before, and the slide show this year is going to be pictures of Loudoun as far back as I can possibly find them. I have found some, and I don't know who in Round Hill kept the pictures, but Round Hill, good job, because there's lots of Round Hill.

[01:45:31] I'm having a really hard time finding pictures of old Loudoun County, especially eastern Loudoun County. So if you have pictures, because we're not going to pay \$10 a picture, right? If you have pictures of Loudoun County, as far back as we can go, whether it's scenery or people, and if you can especially identify who that is, please send them to me because we're putting together the slideshow right now.

[01:45:59] And we need about at least 40 more really good slides and really good pictures of Loudoun County from years and years ago. Okay, see, I knew if I asked in this group, I could get it. Thank you. Chair Randall and I this past weekend went to Ashburn Presbyterian Church where we had given them the the Loudoun County Heritage Register and it's the they're only for 150 years of serving the community.

[01:46:34] it was a wonderful day it was a little chilly but afterwards we had it was it was wonderful it was like an outdoor church picnic afterwards where they had food barbecue and a whole row of pies which I couldn't eat everything but yes it was wonderful and the thing about that church which was so cool is I learned two things I learned that the cemetery and a graveyard are two different things a graveyard is by a church a cemetery is not and so this was a graveyard and I learned that

[01:47:12] this was one of the only places in Loudoun where in their graveyard they had um African Americans buried in the same graveyard as non-African Americans which I that's I that I that's that

[01:47:23] wasn't normal for for for then so it was it was pretty fascinating actually so Kirsten why don't

[01:48:32] you come and join me down right now we'll get all these done because we have a whole lot of people Yeah, we'll do Correctional Officers Week first. Everyone here for Correctional Officers Week, come down. How are you?

[01:49:08] I'm very good. How are you? Nice to meet you, Alan. Nice to meet you, too. Good to see you. Good to see you.

[01:49:28] Yeah, on the 15th side.

[01:49:50] Correctional Officers. Yes, ma'am. So in the, in the, in the, in the, so, so I, I've done a lot of stuff before I became chair. So I used to be chair of the State Board of Corrections, and I am a mental health therapist who spent her career with offender populations in jails and prisons as a therapist.

[01:50:12] I will tell you, I have seen good correctional officers change the lives of human beings. I have watched it happen. I've seen poor correctional officers really harm human beings, but I've seen good correctional officers change the lives of human beings.

[01:50:28] And I think if you're Mr. Mosher, Colonel, you talk, everyone knows that I am very partial to people who work in jails and prisons because it's hard jobs. You see a lot.

[01:50:43] It's traumatizing. But you also know that those are not throwaway people and that most of them are probably going to get back out. So let's do something with them while they're there. At the same time, you have to be careful because it could be a very dangerous place to work as well. And so when I say I really, truly understand the job you all do every day, and I was trained to do it, and I did the whole get pepper spray thing, all that kind of stuff, you all do amazing work, and I cannot thank you enough.

[01:51:09] So proclamation for Correctional Officers Week. Whereas Correctional Officers Week was first proclaimed in 1984 to recognize the importance and contributions of correctional officers across the nation, And whereas correctional deputies of the Loudoun County Sheriff's Office are entrusted with the custody, care, and supervision of individuals within the Loudoun County Adult Detention Center.

[01:51:33] And whereas these highly trained law enforcement professionals operate within a complex correctional environment that demands sound judgment, integrity, compassion, and unwavering professionalism. And whereas correctional deputies uphold the safety and security of the facility while fostering accountability, supporting rehabilitation, and preparing individuals for successful reentry into the community.

[01:52:01] and preparing individuals for successful re-entry into the community. And whereas their work is essential to the criminal justice system and contributes directly to safer communities across Loudoun County and can serve as a positive force for a person at their point of greatest need, now therefore be it resolved that the Loudoun County Board of Supervisors does hereby proclaim May 3rd through 9th, 2026 as Correctional Officers Week in Loudoun County and recognizes the vital role Correctional Deputies play in public safety.

[01:52:47] Chair Randall, thank you, and also thank the board. Also, we are our brother's keeper is what this comes down to, so everybody that's coming in will be getting out of the jail one day, and so we want to

prepare them for that.

[01:53:05] But I do want to thank the board on behalf of the sheriff, if I may, for the medical director position that was offered, especially as we get ready to go into phase three and for recovery, for people going through substance abuse and recovery. This is going to be an integral part of people being able to integrate back into the community.

[01:53:23] So everyone involved with that, thank you, and thank you for the continued support. Chair Randall, thank you very much. You want me to say something before you, or should I defer to my elders, as they say? You guys aren't allowed to say that. So first of all thank you all for being here, thank you for all the hard work that you do. As the preferred attorney for the PBA I get to deal with a lot of you guys on the legal side and get to deal with a lot of your clients as a criminal defense attorney. When I say clients those folks that are incarcerated and I will tell you one of the things I find that it probably being a correctional

[01:54:02] officer maybe some of you may agree but I think maybe one of the toughest jobs in law enforcement simply because you don't get the glory necessarily work in the streets or the big cases or moving up to deputy or I mean excuse me up to investigator per se but it is such a critical part because you do find people sometimes at their lowest and it's so easy to get burned out it's so easy to get jaded honestly because you do see folks come in and out of the system quite a bit but there is that one as chair Randall mentioned here and there that you can obviously have a huge impact on their lives and it is says it is correctional for a reason because sometimes

[01:54:38] they that we need correction and i think one of the most important parts of uh of a correctional officer is really it is contributing to the quality of life to the community because it is helping to keep safe and obviously the judicial system the judges and the attorneys take care of much of that and then you just carry out that role but i i'm i'm entirely i'm i'm eternally grateful i think this community is eternally grateful and sometimes you just don't get the recognition so I'm really glad we're able to do a resolution like this. Well thank you Supervisor Kirchner and Chair Randall for recognizing a great work that it's a tough job our correctional deputies do and it's I think very underappreciated and when you look at the sacrifices they make the hours that

[01:55:17] they work the people that they have to deal with it's very very difficult but they do a terrific job here and the one thing that you did mention chair Randall and certainly Colonel Mosier is what we do on the on the side when we're letting them out okay we we do have a very robust reentry program we try to get people going in the right directions because we look at our success as when we don't have recidivism okay our success is when people don't show back up and so we're trying to do everything we can we enforce the law but we also want to make sure that we give people that break the law the opportunity to correct themselves and then to actually have opportunities to get out there and and you know live

[01:55:54] productive lives get productive jobs and go on from there so thank you for recognizing this and and I know you've been a huge supporter of what we do certainly at the over at our ADC and so we're in in our court so we're grateful for that so thank you very much. It is interesting because this is the one job where you help somebody along the way and then when you leave you go I never want to see you again as long as you live as long as we live so that's very true all right let's uh I'm gonna give this one make sure you get one of these but maybe one won't get one but I wanted him to get who's the most senior

[01:56:27] person in the, in the, in this, who is in the correction right now.

[01:58:40] Everybody else who's coming for Police Week, come on up. Give some CK.

[01:58:46] This is the proclamation for Police Officer's Memorial Day.

[01:59:56] You want this one? Because he's not that young. No. When you turn 50, you lose your eyesight. Whereas in 1962, President John F. Kennedy signed the first proclamation, recognizing May 15th as peace officers memorial day and the week in which it falls as police week to pay tribute to the law enforcement officers who have made the ultimate sacrifice for our country and whereas law enforcement officers report for duty every day with the knowledge of the dangers they may face and the sacrifices they may be called upon to make to safeguard the public and enforce

[02:00:32] the laws of the commonwealth of Virginia and Loudoun County and whereas we reflect upon the enduring commitment and valor of our law enforcement officers as their commitment to upholding the law in our community ensures the safety and well-being of all residents in the county and whereas it is vital that we pay tribute to law enforcement officers who have fallen in the line of duty and recognize their sacrifices as well as the hardships and loss suffered by families for those fallen officers and whereas the duties of law enforcement can take a significant toll on the mental health of officers, deputies, troopers, and marshals. It is important that law

[02:01:10] enforcement officers are cognizant of their mental health while protecting and serving the community. It is therefore resolved that Loudoun County Board of Supervisors hereby proclaim May 10th through 16th, 2026 and May 15th, 2026 as Police Week and Police Officers Memorial Day.

[02:01:27] All right, I have the microphone. That's dangerous, giving a lawyer the microphone. First of all, thanks again. I know I spoke a little bit earlier on my appreciation specifically for those working in the detention center.

[02:01:47] But obviously, this is a little bit different, and it is recognizing those who have fallen in the line of duty. And it is obviously a huge sacrifice that families undertake. And I love the line in this resolution, which ultimately says, when you take on this task, often unappreciated, that's why we try to make sure your salaries stay up here.

[02:02:10] We want to make sure we attract great people here in Loudoun County, but often unappreciated. And a lot of people don't understand, I get to see it on a regular basis, both in my work and my work with law enforcement, how difficult the job can be and how you leave your family each and every day knowing that you may not return or you may be maimed or hurt or something will happen in the line of duty because you are really the first responders to very dangerous situations.

[02:02:35] And it's not lost on this board or on the chair or on leadership here, the sheriff and our other chiefs here in this lineup, how you guys, it's a tremendous sacrifice sometimes. And for those who have fallen and paid the ultimate price, we love those families, and we appreciate those who may be listening or who are here in the audience tonight.

[02:02:58] So thank you for your sacrifice. Thank you for your willingness to put your life on the line. And this is a very, very important resolution that we as a board should put forward. And I think if you've ever heard me talk, you know what I'm about to say. I'm about to say to you that often first responders, including and maybe even especially law enforcement, don't take care of your own mental health.

[02:03:23] When you see something tragic or something happens and it's just overwhelming to you and somebody says, how are you doing? You say, I'm okay. I'm okay. I'm okay. And sometimes you're not okay. it's okay to not be okay there's a reason law enforcement officers have a higher suicide rate it's a reason that you have a higher domestic violence rate you have all those things because the stress of the job is heavy we did place and we were more than happy to fund a mental health therapist in in within the sheriff's department for this very reason I say this all the time you have

[02:03:59] to take care of the people who take care of the people and I need you all to to take care of your mental health, just as you take care of your physical health, just as you go work out and do all the things, take care of your mental health. We need you all, and we need you healthy and strong in all the ways.

[02:04:15] And so please take care of your mental health. I am going to go down, and I know that there's more than one agency here. I did want to find out all the different agencies that are here. So I'm going to start down here and have you go down with them, and let me know what agencies you are in.

[02:04:34] Town of Percival, Metro Transit Police. Mike Holman, Town of Percival. Lieutenant Tabb, Metro Transit Police.

[02:04:52] Deputy Shipman, ADC. Dylan Fiscato, Sheriff's Office. Good afternoon, Gunley with the Loudoun County Sheriff's Office. Deputy Santos, Loudoun County Sheriff's Office. Lippa Lemos, Loudoun County Sheriff's Office. Master Deputy Briggs, Loudoun County Sheriff's Office.

[02:05:12] Deputy Bilker, Loudoun County Sheriff's Office. Deputy H.I., Loudoun County Sheriff's Office. Bob Bozier, Loudoun County Sheriff's Office, and she's a great shot, by the way. Chief Sean Jones, Middleburg Police Department.

[02:05:30] Chief of Police, Sarah LaBronia, Percival Police Department. And she's not acting anymore. Mike Chapman, Loudoun County Sheriff's Office. Chief Theopernet, Leesburg Police Department.

[02:05:47] Deputy Bedell, Loudoun County Sheriff's Office. Deputy El Nijar, Loudoun County Sheriff's Office. David Hill, Loudoun County Sheriff's Office. Calvin Moore, Loudoun County Sheriff's Office. Chris Sawyer, Loudoun County Sheriff's Office. Chris Brossan, Loudoun County Department of Animal Services.

[02:06:05] Nina Stively, Loudoun County Animal Services. Bradley Schultz, Town of Leesburg. Chris Mangaluzzo, Leesburg Police. Ryan Martin, Leesburg Police Department. I'm going to hand the proclamations to the Sheriff Chapman's and the Chiefs.

[02:06:29] Sheriff Chapman, I want you this much.

[02:08:49] So you might as well stay down here for EMS, because then Ms. Brickson is going to be the last two with me. She's going to do Lyme disease. EMS, would you come down, please?

[02:09:01] The proclamation for Emergency Medical Services Week.

[02:10:08] Whereas emergency medical services are a vital public service while providers delivering life-saving care to those suffering sudden illnesses or injury, and whereas access to quality pre-hospital emergency care dramatically improves the survival and recovery rate of patients, and whereas the emergency medical services system consists of first responders, medical technicians, paramedics, public safety, telecommunicators, firefighters, law enforcement

[02:10:42] officers, educators, administrators, nurses, physicians and trained members of the public. And whereas the members of the emergency medical services team, whether career or volunteer, engage in thousands of hours of specialized training and continuing education to enhance their life-saving skills, and whereas the Loudoun County community is truly fortunate to be served by our talented and dedicated emergency medical services provider.

[02:11:14] Now therefore be it resolved that the Loudoun County Board of Supervisors does hereby proclaim May 17th through 23rd, 2026 as Emergency Medical Services Week in Loudoun County in honor and recognition of our emergency services personnel and the vital contributions they make to the safety and well-being of our community. The stat you guys gave a little while ago, just it took my breath

[02:11:47] away when you said that, is it 73% of calls are EMS calls? That is, and you know, one of the things I noticed, and I was going to say this to the law enforcement also, when we did, during the valor awards is how many of those calls were calls for people who were having behavioral health issues and also a medical emergency services call. So I'm going to pass this microphone to either Chief Williams or Dr. Morgan. Okay. There we go. Thank you, Chair Randall. Thank you,

[02:12:21] members of the board. So I originally joined the fire department back in the day to get to medical school for a myriad of reasons that didn't happen but what I fell in love with was patient care and as I've moved up and around in the fire department here I have one major regret and that's not being an ALS provider and I believe with the exception of Supervisor Kirshner and Chair Randall I'm the only one up here that's not so we do some really really neat stuff in Loudoun County from the

[02:12:58] BLS provider all the way to Dr. Morgan. So I'm going to turn it over to him. He has some incredible stats that he shared with us that engages the community, but Dr. Morgan, I think that we have something very special in you, so thank you.

[02:13:15] Thanks Chief. Yeah, I only got to EMT before I jumped to the doctor piece, so you're in good company. I never became an ALS provider either, but so this week this year's theme is improving outcomes together. Obviously we ultimately we do everything we do because of the outcomes we really care about good outcomes and getting people to wellness to walk out of the hospital after a sudden cardiac event or all of those things but the together part is very important you know we are a team we work as a team on scene but it's such a huge behind-the-scenes operation everything from our office of quality assurance to the call taker

[02:13:53] dispatchers working with law enforcement mental health people in the community the hospital, the citizens, the community. We couldn't do what we do without a concerned citizen calling 911, delivering first aid, CPR, maybe donating blood to support our blood program, all the things, right?

[02:14:10] It's a community effort to do what we do. And we're very fortunate to see those outcomes improving. We can focus on cardiac arrest. We do a lot, we look at that. For the past five years in a row, we've seen our cardiac arrest survivors walk out of the hospital, go up every year for five years straight.

[02:14:27] So fifth year, we're seeing record numbers of our own citizens returning to the community after such a tragic event, serious event, as bad as it gets. So that's just one example of the things we're doing every day. And we appreciate the support of the community, the Board of Supervisors. We are indebted to you for all the financial support to allow our people to do the things we do 'cause we couldn't do it without you.

[02:14:50] So thank you for that. Sure, blood transfusion program. So we were one of the first in the nation, first in Virginia, to deliver blood from the ambulances on the scene of accidents and other situations where people were bleeding to death.

[02:15:06] And so since that time in 2020, when we started this program, we've delivered well over 100 units of blood, 100 patients, and have had some great survival stories from that program. And more importantly, it's spread around the region. You know, the entirety of Northern Virginia is now doing this.

[02:15:24] It's spreading throughout the other parts of the state. I just had a conversation yesterday with folks in the Roanoke-Carilion area, and they're working very hard to get a blood program. They can't. They haven't had as good cooperation with their hospital partners as we were lucky to have up here. So it's been a great program locally, and it's really nice to see it spread.

[02:15:43] So thank you.

[02:15:49] No, Lyme disease.

[02:17:45] Is it just Lyme disease? Is that the only one we have? When is that one? No, we already did that one. So, Ms. Bricksman, where did she go? I think the, is that, that's five, six. No, is that it?

[02:18:01] I think the other ones are in person. I mean, we go there, which is Lyme disease. Would everyone come down for Lyme disease prevention awareness month, please? Did you see Dr. Goodfriend? There he is.

[02:18:16] Mm-hmm. Would you like to read it? Hello. Hello. This side, Dr. Goodfriend? Hi, how are you?

[02:18:31] Good to see you again. Dr. Goodfriend, great to see you. You're so close to me in the light. - Oh my goodness, oh my goodness. - Okay, test, test, test, test, test.

[02:18:51] Okay, proclamation. Whereas, according to the Centers for Disease Control and Prevention, Lyme disease is the most commonly reported vector-borne illness in the United States, and if left untreated, can cause fevers, swollen lymph nodes, muscle aches, fatigue, facial palsy, cardiovascular issues, as well as neurological effects.

[02:19:10] And, whereas, Lyme Disease Awareness Month aims to educate the public on the symptoms of Lyme disease. The dangers posed by tick bites always avoid, ways to avoid exposure and the importance of early diagnosis and whereas in addition to Lyme disease, ticks can cause Rocky Mountain spotted fever, anaplasmosis, I think you shut me up, ehrlichiosis, babesiosis and alpha-gal syndrome and whereas checking for ticks, proper removal and disinfection of the bite is imperative and, if done promptly,

[02:19:49] can aid in the prevention of the disease. And whereas Loudoun County Health Department has made incredible efforts to promote Lyme disease awareness and prevention to keep county residents aware and safe from Lyme disease and to promote a healthy community.

[02:20:04] Now, therefore, be it resolved that Loudoun County Board of Supervisors does hereby proclaim the month of May 2026 as Lyme Disease Awareness Month in Loudoun County to promote education and Lyme disease prevention and emphasize the importance of early detection diagnosis and treatment.

[02:20:26] So I actually had to use my kit the other day. Yeah, I was outside and came in and there was one right here. Yeah, but I used, I did all the things. So thank you for the education of the county. I have been

educated and I think I'm fine. But as I understand it, as I understand it, we have reduced the cases in Loudoun County.

[02:20:47] Please tell me that's true. - Well, it's a challenge. Definitely awareness has been very good in Loudoun County about ways to stay safe from Lyme disease. It does change year to year. People get infected in all parts of Loudoun County.

[02:21:04] So typically the Leesburg Flower and Garden Festival is our kickoff for Lyme disease awareness. So we have a presence there. We were just out in Sterling this weekend because our immigrant populations are at increased risk and also less likely to get diagnosed with Lyme disease, in part because of a darker color of their skin, and they may not be as aware of Lyme disease from their countries of origin.

[02:21:34] And then we're also going out as part of the farm tour in the Western part, where definitely per capita, it's an increased risk. And I'm very pleased to welcome Carol Hodgson, who is part of the Atlanta Health Commission.

[02:21:50] And the health commission has been continuing the efforts of increasing awareness of Lyme disease in Loudoun County. Carol? - We certainly appreciate your support for the, to give us the money to get these tick kits and also the education.

[02:22:08] And our goal is to get throughout Loudoun County. And every year we pick a certain population and we are an area that has had a high rate of ticks so that we make sure that we, We don't hear as much about Lyme disease as we did five years ago, but it is still very prevalent.

[02:22:26] So we need to make sure that all of our people in our community are educated. I actually went to the Leesburg Flower and Garden Show, and you all were there. I was surprised. I did not realize how incredibly small a tick is.

[02:22:42] They are just tiny. How do you do the education to say, like, if you were here, go check for ticks? And where on a person's body might they try to land themselves? And where should people, as they're checking themselves, where should they check?

[02:23:00] The tick goes to the warmest spot of your body. So under your arms, behind your legs, any place that is warm, because they can tuck themselves away. They get in your hair. And, you know, it's so easy. I live out in Lovettsville, and I can walk through my field every day and find ticks, because the deer out there are so prevalent, and they are the carriers of the ticks.

[02:23:29] To answer your question, you just have to look, and it's hard to find. A friend of mine went to a dermatologist the other day, and they found one, and she didn't have any symptoms or didn't know it was there. So you really have to look and try to keep your clothing, lighter color clothing, because you can see them, and tuck your socks into your pants.

[02:23:52] That's what I do. I wear boots when I walk out in the fields just because of that reason. You will also see sometimes when you're going hiking on trails now, they will have signs that remind you to check for ticks when you're getting back in your car at the parking lot and those sorts of things, which is great.

[02:24:11] Definitely. Chair Randall's favorite department, Parks and Rec, has been a terrific partner with us in putting up tick signage. And same with the town of Leesburg. But the key thing, as Carol was alluding to, is people can get those ticks everywhere.

[02:24:33] So while people think about it on the trails, many folks are picking up ticks just as doing gardening around their house. Because even if you don't see the deer, the mice also carry the ticks and drop them off. Okay. Never going outside.

[02:24:52] Okay, we're going to start public comments.

[02:27:01] And I think we have quite a few people just signed up for public comment. So let's just talk about public comment for just a second. I'm going to remind everybody that how the boardroom conducts itself during public comment.

[02:27:17] I'm going to request that all people who are going to be speaking tonight adhere to these guidelines so we can assure that everyone has a chance to be heard in public comment. We do public comments for 90 minutes, so from the time we get the first speaker to the last speaker, within 90 minutes, we have public comments.

[02:27:37] I do call people first who want to speak on an agenda item that's on the agenda tonight. And so you will be called first, and then if you want to speak on an agenda item that's not on the agenda tonight and we have time, I'm more than happy to call you next.

[02:27:55] I call your name about three people in advance so that you know you're coming next. We want you to know that you're up next. And so we do that in advance. The timer on the podium will tell you how much time you have to speak. You get two minutes to speak.

[02:28:10] When your two minutes are up, I do ask that you yield the floor to the next speaker. Thank you very much. If you are going to be speaking, and do we have anybody speaking remote right now today? I don't think, one person, okay. If you're speaking remote, I'm going to ask that you keep your own time on your own phone because you might not be able to see the clock in the boardroom.

[02:28:31] And I don't want to stop you when you get to a minute and 30 seconds because it messes up your flow, but I will stop you when you get to two minutes. I'm also going to ask that as you're speaking, everyone face the board. Your comments should be directed to the board of supervisors and don't turn around and speak to the audience.

[02:28:48] one, you know, your comment should be up here, but also when you turn around, you are no longer on the microphone. People can't hear you. These requests are part of the rules of order that were agreed on by the Board of Supervisors, so not really my rules, they are the rules of order from the Board of Supervisors of how we want to take public comments, and And I'm going to respectfully ask that everyone respects our public comment period.

[02:29:18] And welcome you all to the boardroom. Thank you for being here. I'm going to start calling you again about three people in advance. Our first speaker will be Phil Daley, followed by Brendan Donahue, followed by Rosemary Zapata.

[02:29:37] I think that's right. So Phil Daley, are you here? Phil Daley, you are here. Hello, sir. That's okay. Take your time. Good evening.

[02:29:52] Thank you, Madam Chair. I'm Phil Daly. I live in Lincoln. I'm here to urge you not, not to approve or move forward with the expansion of equestrian trails at Banshee Reeks Nature Preserve. I speak from over 20 years experience as a nature camp director and naturalist.

[02:30:14] I spent 17 years at nature camp at Banshee Reeks. and about five years at Blue Ridge Center, now Sweet Run State Park. One had no horses, the other had horses.

[02:30:30] At the Blue Ridge Center, the equestrian group did a great job maintaining the trails and helping out. They were good neighbors. The problem was when you had kids or children and horses on the same trail, well, first of all, the trails got awfully muddy.

[02:30:49] There were sometimes road apples on the trail. Kids like to touch anything they want to touch. Our staff was mostly teachers or principals from the school system. I was a director. So the other major problem was when you have the kids and the horses on their trails and their meat, who has to move?

[02:31:18] It's got to be the kids. It's got to be the kids getting off the trail. It's just the same problem that horses have on the gravel roads with speeding cars, okay? I think you really have to think this one out. You've already approved four miles.

[02:31:35] Let's hold it to that until you find out where you are and where we are. It may work out. I'm not saying it won't. The trail riders are a great bunch of people. However, every once in a while, they don't stay to their trails.

[02:31:51] We had them come into our camp center, way away from where their trails were supposed to be at Blue Ridge Center several times. It does create a problem when you have kids with autism or some other problem. They get excited.

[02:32:07] They do things they shouldn't do. I guess I'm up on the time, but I appreciate you to really consider safety first. Thank you. Thank you, sir. Thank you. Brendan Donahue, you will be followed, sir, by Rosemary Zapata, followed by Kelly Fultman.

[02:32:28] Good evening, sir. Good evening. I'm Brendan Donahue. I'm here to speak on behalf of the Friends of Banshee Reeks. Banshee Reeks is Loudoun County's only nature preserve, and for nearly 30 years it has been intentionally managed as a low-impact, private use, I'm sorry, passive use environment focused on habitat protection ecological restoration and quiet public access the prcs approved proposal represents a fundamental shift away from that mission the county is now seeking approval for

[02:33:03] 8.3 miles of equestrian access four miles were originally approved now additional 4.3 miles have been added to the pro proposals extending trails into areas that were not part of the initial environmental review. While public messaging has suggested a limited perimeter-only establishment of trails, the reality is very different. The proposed trails directly impact protected areas.

[02:33:34] County maps show routes crossing the Goose Creek buffer and entering stream buffers, seep zones, and riparian protection areas. Equally concerning, environmental protection was not the driving factor and selecting additional trails. The stated criteria focused on avoiding wet soils, minimizing construction, and keeping costs low. NPRCS statements that the trails can be modified and maintained by existing staff and volunteers at little to no expense are simply unrealistic.

[02:34:10] There's also a serious public safety and operational concern as mentioned by the previous speaker the preserve is heavily used by families and children introducing horses onto narrow trails creates predictable conflicts and risks yet there is no clear plan for emergency response staff training or risk management sir yes your time is up thank you thank you very much

[02:34:40] um rosemary uh zapata followed by kelly foatman followed by emily johnson rosemary are you here is she here rosemary rosemary going once going twice are you rosemary you are rosemary hello how are you hi my name is rosemary and i have lived here in london for several years i have two

[02:35:17] daughters and i work at a daycare i have always dedicated myself to working but unfortunately Two years ago I had a health problem that made it difficult for me to continue working regularly. My husband also works but earns an average income. We were forced to look for help to pay the rent and that's how we applied for the rental assistance program funded by ARPA.

[02:35:48] At that time it was a great relief for our families finance as we were able to catch up on our rent and cover other basic needs such as food and medicine. That is why I want to spread how important these assistance programs are for families like our working class families who need support during difficult times. I Kendall ask for your support and your vote in favor of to local rental assistance proposal. Thank you. Thank you ma'am. Thank

[02:36:26] you very much. Kelly Fultman followed by Emily Johnson followed by Jose Marie Turcuros. Good evening Miss Fultman. Good evening. I bet you think I'm here to talk about Banshee Reeks. I do. But I trust that you will do right by the equestrian community and approved PRCS recommended and VOF approved 8.3 miles of trail. This has been a 26 year odyssey and a 10 year effort to rectify a previous wrong. I'm really here to say that widening Woodgrove Road and the bridge to accommodate a double yellow line will only create a de facto bypass around Hillsboro with increased speeds and safety concerns.

[02:37:02] Woodgrove has already seen increased through traffic from West Virginia commuters with speeds 10 to 15 miles in excess of the 35 mile per hour speed limit. The road itself is poorly maintained with sharp degraded shoulders that if you are run onto them, they will puncture your tires. Many drivers ignore yield signs and treat stop signs like suggestions. I know I live off Woodgrove and I travel it multiple times a day, often with the horse trailer. It's becoming congested, but the recommended improvements without speed control and enforcement is only going to benefit West Virginians, not locals. It will drive like 719 south of Woodgrove or south of 7 or Western

[02:37:42] Alder School Road with much more traffic at higher speeds and more driveways and tertiary roads along the route. I would also, since I have a little bit of time, say that the Loudoun Equine Alliance is concerned about the hours of operation for events uses that were voted on last night that do not support the equestrian businesses who require 7 a.m. to 10 p.m. for public facing hours.

[02:38:05] Thank you, Ms. Boatman. Thank you very much. Emily Johnson, followed by Jose Mario Tercruz, followed by Veronica Gonzalez. Good evening, supervisors. Hi, this is Emily Johnson in my Piedmont Environmental Council hat.

[02:38:23] We'd like to thank the board for some meaningful designations and good future planning tonight. First, we're grateful for the proclamation recognizing Maya's Historic Preservation Month. We, too, share a value for preservation and appreciate that this recognition comes alongside real material support. including a new history and heritage email subscription channel and new story map of our local heritage register properties.

[02:38:42] We hope that the ethics shared behind this proclamation means that you will also lend your support to the designation of Old Waterford Road as a state scenic byway tonight, item 12. Second, we're

also thankful for the proclamation recognizing Bike to Work Day, which shows a commitment that we share towards multimodal and sustainable commuter connections.

[02:38:59] We further appreciate the transportation safety study around the Ashburn Metro, item 10, which is a crucial public transit hub and should be safe for pedestrians and bicyclists to reach. The safety and accessibility we all hope to realize around the Metro is also an example of the vision laid out in Safe Streets Loudoun, item 7, which we further support tonight.

[02:39:17] We, too, believe in a safe and healthy future supported by an equitable, multimodal transportation system in Loudoun. and note that the plan emphasizes how intersection and speed profiles on roads are crucial aspects of safety for all users. To that end, we're glad to see that recommendations for Route 50, Item 8, don't widen its lanes and instead continue traffic calming approaches.

[02:39:39] However, we're concerned about the roadway widening and replacement of bridges proposed for the rural roads off Route 9, Item 9, noting that there's no real definition in the report of what modest widening will be, even as it notes of full widening to standard VDOT cross-section would increase paved area 50% and be contrary to speed management interests, impactful in the surrounding properties, prohibitively costly, etc. It appears that you might have to move farther into the design process with VDOT to understand what modest means, but we do encourage caution and attention. Altogether we hope to see even more work on both preservation and smart transportation in Loudoun County and would like to

[02:40:15] also express our excitement for the HVDC transmission study, item four, which we also hope will help preserve areas of our community thank you thank you miss johnson thank you you got a lot in there you did not too many you did jose um um mario turquoise versus uh followed

[02:40:35] by uh veronica gonzalez followed by bill hatch is uh jose mario to turquoise is he here no he's

[02:41:16] not here? Okay. And Mrs. Gonzalez is not here, and we, you, oh, Ms. Gonzalez, now I'm confused. Ms. Gonzalez is here. Okay. Hi, how are you? Hello, Chair Randall and board supervisors, thank you. My name is Tracy Endo, and I'm speaking on behalf of Veronica Gonzalez. That's what I thought. So we're going to put you, we're going to put, I'm going to, you will have time. I will get to you, but normally I don't do that. So you, you will have a moment. It just won't be this moment okay okay so miss gonzalez is actually not here okay okay so i'll come back to you ma'am

[02:41:53] bill hatch followed by a remote speaker kim fulmer good evening mr hatch evening madam chair and board a masterful job last night thank you sleep deprivation is real yes it is yeah i'm going to speak about the rural economy in loudoun county I believe that open land and rural Loudoun is worth saving, the farms, the woodlands, and the beautiful breathtaking views are not only beautiful but they're essential to our identity

[02:42:28] and our economy. Two weeks ago we suffered one of the most devastating and prolonged freeze events I have seen in my 77 years. Most perennial fruit crops suffered losses of 70 to 100 percent for this season and some trees and vines will never recover the few orchards and vineyards that were spared were located within the mountainside overlay district the existing mountainside overlay district will hinder and in some cases make impossible meaningful economic

[02:43:04] development in rural laden why the unwarranted 40 canopy increase in motion 11 last night this is something i don't understand the mod regs impose a 150 foot difference between the catoctin range

and the shorthill range and i just don't really understand why and the county tree canopy has increased dramatically since the opening of delos airport

[02:43:40] 60 years ago and by the county's own numbers has increased over three percent over the past 13 years, which was a witness of huge development in Loudoun County and a lot of data centers. What are we trying to fix by imposing this increase in the tree canopy and the mountainside ordinance? Imposing additional regulations on an already suffering and staggering agricultural economy. I'm sorry, your time is up. Thank you. Our next speaker will be James Russell,

[02:44:15] Because our remote speaker is actually not, this is not, she's talking about the data centers is not part of our discussion tonight. So we're going to go to James Russell. Mr. Russell, you'll be followed by, jeez, I don't, I can't read this writing.

[02:44:37] I think it's Amario Lopez, I think. Amario Lopez, okay, you'll be after Mr. Russell. Mr. Russell, hello, how are you doing, sir? Hi, how are you? I have come to advocate for the advancement of the rental assistance program.

[02:44:55] The cost of living in Loudoun County is absurdly high. It disproportionately injures our hardest-working neighbors, particularly our immigrant neighbors. Instead of treating these neighbors with the kindness that God expected of us, we terrorize them with under-regulated Gestapo tactics by federal kidnapping squads.

[02:45:16] As soon as I saw such tactics in Loudoun, evidence of such, I spoke at the board in January or February of last year. Uncharacteristically, the board, quote-unquote, took umbrage with this description.

[02:45:33] Unfortunately, it appears that the Loudoun County Board of Supervisors takes greater umbrage with the suggestion of Gestapo tactics in this county than they would take umbrage with the actual application of Gestapo tactics in this county. screen lock uh footage ever since then has been circulating in greater abundance of such uh state-sanctioned terrorism against some of our most cherished uh neighbors and constituents the time is now to stop punishing the people who hold our world together please

[02:46:13] advance the rental assistance program and with the remainder of my time i would be remiss to not remind the board and the county that the palestinian american families among the constituency continue to witness a genocide against their own families in Palestine.

[02:46:30] Companies with a substantial presence in this county continue to optimize the eradication of an ethnic group under an apartheid system. History is staring at us, scrutinizing our every action and statement. Please advance the rental assistance program, and please do more to speak with your Palestinian-American constituents.

[02:46:49] Thank you. Free Palestine. Okay. I'll handle that later. I think the next speaker does need an interpreter. Hello, sir. How are you? Hey, how you doing? Good afternoon. Just give me one second.

[02:47:05] Are you Mr... Is it Lope? Amariko Lopez, yes. Would you like an interpreter, sir? No, I'm okay. Thank you very much. Wonderful. Yes, thank you for asking. Absolutely. I appreciate that. Good afternoon, Board of Supervisors. My name is Amariko Lopez. I think we've seen each other before. And I'm here to speak on behalf of the 75 display families from Lisbon Mobile Home Park.

[02:47:23] My family is one of the few that managed to remain in Loudoun County, But that privilege is costing us dearly today, we actually, we pay five times more for a roof over our heads than we did before.

[02:47:41] A burden that forces us to work double or triple shifts just to be able to stay here. That extra effort means less time for our kids and zero opportunities to save for our kids' future. That's why we ask to advance rental assistance programs.

[02:48:01] We need real investments and affordable housing, investments that can make the difference between stability and displacement. The families who build this county deserve the opportunity to continue living here.

[02:48:17] Thank you very much for your time. Thank you, sir. Thank you. Alejandro Hernandez, are you here? Sir, would you like an interpreter, Ms. Hernandez?

[02:48:34] No? Okay. You guys are writing this down here. Thank you for asking, but I think I will try my best. Wonderful, wonderful, thank you. Good afternoon, Bob, supervisors. We've been here before, and I say we because most of you know him. So I'm here on behalf of the Rental Assistance Program.

[02:48:51] As you can hear and have been hearing, there is different histories. We all have different lives. We all have different issues that we're going through. But definitely through the county, we are struggling. We are hardworking people. We're not asking anything for free.

[02:49:07] We just want to have time for our children, time for ourselves because, you know, sometimes having two or three jobs affects our mental health too and our physical health too. But we have no choice.

[02:49:22] Either we put a roof over our kids' heads or we don't work. So that's why we're here today to advocate for our rental assistance program because at the end of the day, it's an investment that you will do on the future of this county. I've been living in this county for 15 years now.

[02:49:39] I'm not planning to move because it does give me a great satisfaction to see that I live in a great county that support my kids with special needs and they could get me a really, really great support. But I've been trying to move just because of the rent.

[02:49:57] Sometimes it's not affordable. I had to choose either to buy something for them or pay the rent. So that's why we're here today. I want to ask you to look this program as an investment. It's not anything that we're asking for free. It's something that you guys will invest on the future of this county.

[02:50:16] I'm sorry. Well, that's why I'm here today. And as I say, we've been here before. But definitely I want to reach to you, all of you guys. We've been meeting with a couple of you. You've been hearing all different testimonies.

[02:50:32] But at the end of the day, it's not just me or not just the people that is here. It's all across the county that we're also offering, all kinds of people, all different races. So I will ask you to just think about it and give us a favor on both. Thank you.

[02:50:47] - Thank you, ma'am, thank you very much. Valencia Tomasa, you will be next, and you'll be followed by Tracy. I cannot make out the handwriting, I'm sorry.

[02:51:06] First name would be Tracy. Good evening, ma'am. Buenas noches, representantes de la Junta de Supervisores del Condado. Mi nombre es Tomasa Valencia, miembro de la Nueva Mayoría Virginia. Vivo en este condado desde hace 15 años.

[02:51:25] Vivo con mi pareja y mi hija de 8 años en los apartamentos Lisboa and Paimé. Mi hija se siente feliz viviendo aquí. Mi esposo y yo trabajamos duro, pero juntos ganamos un ingreso promedio, y por eso el año pasado aplicamos el programa de asistencia de la renta de fondos ARPA. Eso fue una gran ayuda a nuestra familia, ya que pagamos un alto costo de renta, más medicina y comida. Por eso estoy aquí junto a mi hija, para que voten por el programa de asistencia de la renta. Gracias.

[02:52:03] Gracias. Thank you. Good evening, members of the County Board of Supervisors. My name is Tomasa Valencia, and I'm a member of the New Virginia Majority. I have lived in this county for 15 years with my partner and my 8-year-old daughter in the Leesburg Apartments. My daughter feels happy living here. My husband and I work hard, but together we earn an average income.

[02:52:22] That's why last year we applied for the rental assistance program funded by ARPA. It was a great help to our family since we pay a high rent cost, along with expenses for medicine and food. That's why I'm here today with my daughter to ask you to vote in favor of the rental assistance program. Thank you. Thank you.

[02:52:37] The next speaker, the first name is, I think this is, okay, thank you. Welcome back. Thank you, Chair Randall. You're welcome. Thank you, Board of Supervisors. And you will be followed, give me one second, you're going to be followed by Kim Fulmer, who actually is remote.

[02:52:53] Ready when you are. Sure. My name is Tracy Endo, and I am with New Virginia Majority, and I'm speaking today on behalf of Veronica Gonzalez. Good afternoon, members of the Board of Supervisors. My name is Veronica, and I've lived in the Leesburg Trailer Park for more than five years where I raised my daughter and where we built our life.

[02:53:12] Before, I owned my home in the park and paid \$620 for the lot. Today, after being displaced, I'm paying \$1,638 for an apartment, more than triple what I used to pay. This huge increase has put my family in a very difficult situation.

[02:53:32] My mother-in-law also lived in the park, but she was displaced all the way to Winchester because she couldn't find anything affordable in Loudoun. That means I no longer have support with child care. As a mother, I've had to stay home to take care of my children, and financially, we are extremely strained.

[02:53:52] The school change was also very hard for my children. My daughter struggled to adapt because all her friends were gone. It took her months to make new friends and get used to new teachers, especially because she receives additional support in reading. What we experienced was not just a change in housing, it was a break in our community, in our children's education, and in the stability of our families.

[02:54:20] That is why today I'm asking you to invest in real solutions, such as local housing vouchers, so that working families are not displaced again. No one should lose their home, their school, or their community simply because rent became impossible to afford thank you for your attention thank you and Tracy give me one second sir sir are you just an interpreter for whoever mining my services okay thank first of all thank you I think that I don't think there's anyone else who's going to need interpretation tonight however I will ask you the vote for you to do a favor

[02:54:58] I'm going to try to go on and just take this motion up before we go on break and so if there's There's somebody in the audience here who, as we're talking, would need interpretive services. Could you two help with that while we take them? And we'll do it before we go on break so we can have it done.

[02:55:18] Thank you. Thank you so much. The next speaker will be Kim Fulmer, followed by Robert Griffin, followed by Shane Crow. Is it my turn? It is your turn, ma'am.

[02:55:34] All right. Great. Sorry. Okay, so this is part two to my heartfelt plea from a mother of two that lives in the George Washington University neighborhood about to be very much changed by the Amazon Data Center.

[02:55:55] Here's what I know. Amazon felt very, very confident that they would succeed and paid four times the land value. the individuals in my homeowners association are very concerned in fact a few people mentioned the idea of selling our entire neighborhood to amazon if the data centers go through as planned of course not everyone would agree to the sale in this scenario so we can't let it get to this we are scared the burden of these worries is high none of us deserve this i wish my biggest worry related

[02:56:31] to my house was disc golf. I'm envious. But here's what I know. Politicians have proven that anything is possible. Therefore, it is possible to fight the status center and win. Leaving you to advocate on my behalf makes me feel a little uneasy. What else can we be doing to make this issue top news? I appreciate the self-study, and I see that the item five zoning of certain properties under 1972 ordinance proposals went through.

[02:57:01] If this will shut down Amazon's plans, then I am very hopeful. But please tell me more. What are our chances of stopping Amazon? What we really need is lots of information so that we can not have rumors and distant information.

[02:57:17] Thank you very much. Thank you. Thank you very much, ma'am. Robert Griffin, followed by Shane Crow, followed by Emily Houston. Mr. Griffin here. I do not see Mr. Griffin today. Mr. Griffin, are you here going once, going twice?

[02:57:34] Shane Crowe, I do see him today, and he will be followed by our last speaker. How are you doing, Mr. Crowe? Good to see you. Doing well. Good evening. As always, my name is Shane Crowe, a proud lender and resident of the Algonquian District, and speaking on behalf of UPO Virginia, again, a nonprofit, nonpartisan organization advocating for good governance and electoral reform.

[02:57:54] It's been a while since the last time I was speaking to the board. I was just waiting for the good news to come out of the General Assembly, and I'm glad to say that the ranked choice voting legislation has been chaptered and soon will become long July 1st. Now, in recognition of today's business meeting occurring on May 5th, I'm going to deliver the rest of the report in Spanish.

[02:58:25] Returning back to the message, there are four key provisions to the changes to the ranked choice voting local option. The first would be the expansion of ranked choice voting to towns. Now, I know the last time I spoke, I had suggested that it would also go to constitutional offices.

[02:58:42] I apologize. I was overly enthusiastic and misinterpreted the meaning behind the language change to local governing bodies. But towns are now included, and we at Upvote are happy for any expansion, even if it is incremental. There is now language clarifying the standards and procedures for tabulating an election using ranked choice voting in extraordinary circumstances as well, including risk-limiting audits, damaged ballots, and recounts.

[02:59:09] There is stipulation to the State Board of Elections to provide educational materials in general and also to assist any locality that opts into ranked choice voting for their specific circumstances. And

finally, and most importantly, the sunset provision of the local option is now removed.

[02:59:26] So now, the ranked choice voting is a permanent option for localities to opt into, which does mean that 2027 would not be the one and only time Loudoun County could use ranked choice voting. It does take some pressure, but we all know I'm going to continue the pressure so that we can start the sooner the better, of course.

[02:59:42] Thank you again for your time. Thank you every time, Mr. Crowe. We appreciate you. And our last speaker is Emily Houston. Good evening, ma'am. I am with the Rural Roads Committee, and I just want to make some very brief comments on several transportation-related items on the agenda.

[03:00:00] First of all, item 12, the designation of Old Waterford Road as a state scenic byway. Very supportive of this, it implies that the road is a destination in itself, which is something that we want to start thinking of our historic rural roads as.

[03:00:20] It also promotes the idea of leisure and motoring. So that's another important concept and very applicable to this road. On Item 9, the Western Loudoun North-South Corridor Report, I was pleased to see under short-term improvements a reference to performance-based practical design and context-sensitive solutions.

[03:00:48] These are relatively new VDOT policies and they're very important, I think, to the way we look at transportation projects in Loudoun County, in western Loudoun County. These policies seek a realistic and practical balance between more traditional transportation objectives such as mobility and safety and preservation of scenic, aesthetic, historic and environmental resources, and other community values and needs.

[03:01:20] And in the item, it says the context-sensitive widening limits the roadway widening to reduce crash risk while maintaining a narrower overall cross-section in the interest of speed management. I think that's a very important recognition that a narrower road can contribute to speed management. On item 8, the Route 50, we certainly applaud reducing the four-lane section to two lanes. This reflects the recognition that a wider road isn't

[03:01:55] necessarily safer. Ma'am? Your time is up. Thank you so much. I appreciate it. Supervisors, I'm trying to do two action items before we go to close, before we read into our first closed session. If we can get a couple under the belt, That would be really great.

[03:02:12] And as always, I'm going to try to clean the room out, clear the room out as much as possible so people are not sitting here all night with us if they don't want to be. I'm going to go on and do item number 12 first, and then we will do the Banshee Reeks items because I think more people are in the room for those two items.

[03:02:34] And so item number 12 is a BMI, so staff would not come to the table. I'm sorry, item 11. I'm sorry. Item 11 is a BMI from Supervisor Briggs and Supervisor Saints, so staff would not need to come to the table for those items, but what I normally do for a BMI is have one of my colleagues kind of introduce what we're trying to do, what they're trying to do, and And then have questions asked of the colleagues and then a motion and that type of thing since a BMI doesn't include staff.

[03:03:10] So since a BMI is by two colleagues, I'm going to do five minutes. You guys can trade two and a half minutes a piece. So one person can do five minutes, I don't care, but we're not going to both do five

minutes. So we're not going to both do five minutes. So Ms. Frickson is going to start first at two and a half minutes.

[03:03:28] And that is item number 11, and the item is the Board Member Initiative for Limited Rent Support Program to Promote Housing Stability. And again, if people could do translation, and you know what, I have to say, I apologize.

[03:03:47] We should have translation equipment in the room, and we will get that done. is that is that is a bad on us I know LCPS has all that equipment and we should have it too and and we were talking earlier about just this very type of thing you don't know what happens until it happens and here we are so we should have that in the room but if you don't mind translate translating some today I'd appreciate it all right miss Bixman thank you madam chair I kind of forgot about the fact that staff wouldn't be here because we've been

[03:04:25] working so closely with staff on this item. This board member initiative is about directing staff to evaluate a limited short-term rental supplement program to promote housing stability for Loudoun County residents who for the most part are already housed but are at risk of displacement. Loudoun County has been operating a rental assistance program using ARPA dollars. That program administered by Loudoun Cares is budgeted at about \$9.3 million and is anticipated in the end

[03:04:58] to be helping 600 Loudoun County households through the end of 2026. So through several meetings with New Virginia Majority, thank you very much for all of your hard work on this, New Virginia Majority. We started talking last year, I believe, maybe even before about doing a voucher program. And we ran into some hurdles about doing a voucher program. We were concerned about the support, you know, voucher programs are permanent, first of all, and voucher programs

[03:05:35] that mirrored federal programs could risk that we would lose federal dollars. And also, you know, traditional voucher programs can be taken anywhere in the country. And so, So, you know, with those concerns, we worked really hard to talk about, well, what could we do sort of to replace what we're doing with ARPA so people don't fall off the cliff, but also so that we don't have a risk to our federal dollars.

[03:06:04] So we would anticipate that staff would come back and give us some options about how we could do this program. I am a very strong believer that this program should not and will not displace any of our other planned programming with our housing funds.

[03:06:21] So I don't want there to be a competition between these programs. I think that Loudoun County, you know, has enough revenue that we can keep the housing funds doing what they're doing for loans and preservation and down payment assistance and all of that.

[03:06:38] And this would be a separate program that covers a completely different issue, although a very real issue. And New Virginia Majority has collected a lot of data about how folks have been displaced. And with that, I will give two and a half minutes back to my colleague who helped on this.

[03:06:56] Before we get to Mr. Sainz, I'm quite sure the staff only did so much because that would be called tasking. And that doesn't happen. Mr. Sainz. Lots of questioning. thank you madam chair um well i just want to correct this is not a voucher program right and yes we have done significant investments in housing including nearly 30 million in our housing fund for fiscal year 2027 budget those investments are central to loudon's long-term housing strategy they support the production and preservation of attainable housing however many

[03:07:30] of these tools are more on the supply and product side they help to create preserve housing but do do not directly address the immediate instability faced by residents who are already living here and paying, you know, paying their share to live here. So the numbers show, you know, 30% area meeting income for a family of four in Loudoun County is \$49,200 annually.

[03:07:53] Using the standard guidance that a household should spend, they should spend about 30% of their income on rent, that would equate to a monthly rent payment of \$1,230. However, a fair market two-bedroom apartment allowance is closer to \$2,314 for rent, requiring a household income of more than \$92,000 to afford.

[03:08:14] So what we're trying to do with this motion is not to create the program, obviously, today, nor does it appropriate funding and ask staff to go, you know, do some research, come back with funding options and time and consideration to either as part of the end-year fund balance or fiscal year 2028 budget. At its core, this proposal is about adding another tool to Loudoun's diverse housing strategy, one focused not only on building housing for the future, but helping residents stay in the houses that we do have here in Loudoun County. As we heard earlier, we heard stories of a resident that was here, but, you know,

[03:08:52] circumstances unfortunately they were forced to leave their their their living situation and were forced to leave the county altogether and I was mentioned they had to uproot their their lives take their children out of schools move away from their families and friends and we don't want to see that now some people are fine with living in different locations and driving in great not a problem but but this program I think could help um county employees first responders our educators child care providers, health care workers, those who take care of our our seniors, those who work in the different businesses here locally.

[03:09:28] So I'm hoping that we'll have a good dialogue with the conversation here in a little bit and hopefully at the end my colleagues will vote to support to move this to the direct staff to do the research and come back to us. Thank you. Thank you. So supervisor says this is a BMI. If you'd like to ask questions before a motion to Mr. Sains or Ms. Bricksman, let me know who you're trying to direct your questions to, and you can do that right now.

[03:09:55] Ms. Tocroni? Yeah, were you? To either one of them you're going? To Mr. Sainz? Okay, cool. Supervisor Sainz, I'll ask you the question. Since you are sitting closest to me. So is Loudoun Cares going to still do the program?

[03:10:15] Because I see they do a really good job of rent assistance right now. That is a possibility. We'll leave that up to staff to go out, do their due diligence, and come back with options. And then, obviously, we'll make the final decisions. But, yeah, that could be an option.

[03:10:31] Yeah, and I had a meeting with New Virginia Majority. And I just want to say it's very upsetting, the displacement of 75 families from the Leesburg Mobile Home Park. That was very distressing. And I'm glad I got to sit down and hear from the community about their experiences and their story.

[03:10:52] so I appreciate that. I will support this. You said that there is not a minimum income requirement. I see we have a motion here, so I think I thought that was in the zero to 50 percent AMI. Am I right? Yes, right now it's we have in our documentation set income eligibility to zero to 50 percent AMI to

reach the most cost burden resonance. As mentioned earlier, if you're at 30 percent AMI, You're supposed to be a family of four.

[03:11:22] It's \$49,000, so when we do have folks that are in those categories. Okay. But again, staff will do the research and come back with suggestions, and we can do the fine-tuning. Thank you. Ms. Umstead. I just wanted to thank Supervisor Sains for giving me a call today and going over some of the concerns I have, and I do have a couple proposed amendments.

[03:11:51] Thank you. propose possibly friendly amendments? Certainly. I would love if they were accepted as friendly amendments. Okay. All right. Thank you. Anybody else have questions? So these are my questions. First of all, we can certainly talk about it.

[03:12:11] I appreciate this is being done. I would much rather see 0-30% AMI than 0-50% AMI. I think if we're going to do this, then we have to, I believe, do for deep, what I would call deep affordability, and that is the zero to 30% AMI, so that's the first thing.

[03:12:33] Secondly, I don't know how long of a period of time you're talking. I would like to see somewhere between three and 12 months, not two years, because if it's 12 months, you can do more people, which is the goal is to have the help as many people, And in that 12 months, there's other things that possibly could be done with our nonprofits or others to try to help a family.

[03:13:01] But I do believe that if it's two years, it cuts in half the amount of people you can help. Whereas if it's zero to 30 at one year, you can literally help double, if not more, residents.

[03:13:16] So I would want you to consider that. I would also ask, would this be something you want to roll permanently into the budget? Because if it is to be rolled into the budget permanently next year, we couldn't use fund balance for it.

[03:13:33] And so is this grants until money runs out, or what does this look like? I mean, what's the long-term plan? Because, you know, listen, I say this all the time. When I came to the board, the amount of money we were putting into our housing programs, our housing voucher programs, our housing programs, not housing voucher, but our housing trust funds was \$1 million.

[03:13:57] Today, that number is \$29 million. We have been a very leaned-in board on housing, and I have been very leaned-in on housing. And again, as a former chair of the state board of Fair Housing Board, I really understand how some of these things work, but we really want to squeeze that money as much as possible and make every penny last, which is why I want to do the lower affordability and which is why I want to do 12 months instead of two years, instead of 24 months. But we'd also have to know what it looks like at the end of that cycle, where is additional money coming

[03:14:36] from because you don't want to set people up, and I want to know why you believe we could use fund balance for this well misspoke when i said fund abundance but yes because the goal is to set up a permanent fund and coming out the budget okay um moving forward and then also i would like to correct you did not mean fun that did not mean okay so i'm sorry about that and i did give you the wrong information if you look at my notes i do have it saying because at one point we were six to two years but then we did change it to say funding should be provided to eligible participants for at least six months with the opportunity for waivers to extend funding prior to reapplication so i think that might help that does help a lot that that cleans things up

[03:15:16] significantly okay very good thank you for that may i address this also madam chair sure um so i guess what what i would like is for staff to i mean they're here they heard what you said i think that um when staff comes back uh they can advise us on whether we should do zero to 50 or zero to 30 we do know from some of the statistics that were shared that um the the bulk of the folks um that we that we are looking for are could be around 40 percent so i would want to give staff

[03:15:52] some leeway to kind of study that and advise us on on what they think and then as far as the six months to the two years i think again i i would like staff when they come back to kind of advise us like what because we're looking for stability right we're looking for these folks to become stable in their home environment and we're envisioning we're envisioning some programming to go with this so if you know if the programming that goes with it would be required to be longer for them to to be fully stable once they exit the program i would want the leeway for it for staff

[03:16:31] to say hey this is the type of programming we're thinking about but then it would need to be maybe 18 months or you know or we could do it in six months or 12 months i just i would like staff to come back and and and kind of advise us on that that would be my take i'll have more questions within the motion because that's not that's literally not what this says i mean that's literally not what it says so i have more questions within the motion who'd like to make a motion thank you i move that the board of supervisors direct staff to evaluate and provide recommendations to implement a county-funded short-term rent supplement program

[03:17:10] that improves housing stability for cost-burden Loudoun County renters based on the criteria described in the May 5, 2026 Board of Supervisors business meeting action item and return to the Board of Supervisors with implementation and funding options in time for possible inclusion in the fiscal year 2028 budget.

[03:17:32] Second. Questions made and seconded. Would you like to open an opening? Yes, I would. Thank you, Madam Chair. A lot of what I was going to say in my opening has been said, but I will just add some of the statistics around the problem we're trying to solve here.

[03:17:51] And I really believe in a dialogue when this comes back, we can come up with some really good solutions. But we have Loudoun households, as Supervisor Sane said, would need \$92,000 to afford a two-bedroom apartment at fair market value rent in 2025.

[03:18:09] That's a sharp increase from 81,800 in 2024. Among Loudon renters, 42 percent, over 13,000 households are cost burdened, paying more than 30 percent of their income on rent. About 21 percent, 6,700 households are severely cost burdened, paying more than 50 percent of their income on rent. This cost falls disproportionately on Hispanic and Latinx renters. A 2021 study by the Community Foundation of Northern Virginia found that among severely cost-burdened households in the region, 57 percent are non-white and 47 percent were born in a different country.

[03:18:48] So we did meet several times with, as I said, New Virginia Majority and the Department of Housing and community development to try and figure out a way to come up with a solution that addresses some of the risks that staff was concerned about last year. And then when we started talking about some of the ARPA programs falling off, you know, the child care fee reduction program we funded, and so then, you know, we started talking about, well, hey, we are already doing rental assistance through this program. Couldn't we sort of look at, you know, not necessarily completely adopting

[03:19:26] what we're doing now, but look at how we could do something similar so that folks don't fall off the cliff when the ARPA dollars do expire at the end of this year. Again, it doesn't create the program today, nor does it appropriate funding today. It asks staff to come back with implementation and funding options. And so those options could be, you know, how many months or years? What's the AMI that we should be targeting? And at its core, this proposal is about adding yet another tool to our diverse housing strategy. One focus not only on building housing for the

[03:20:04] future, but on helping residents and working class families stay housed today. Mr. Sainz. Supervisor, I'm still going to go first. That's fine. Mr. Sainz. Oh, thank you, Madam Chair. My apologies I thought I was chairing the meeting for a second I blacked out for a minute all right thank you again for the you know for you know for allowing us to do the BMI bring this forward again you know as it's been mentioned of course this is not to set up the program now but again is to give the staff the

[03:20:40] direction to go out do the research look at best practices not only just in the region but around the country come back with options they can tell us you know yes, we should do 0 to 30 or 0 to 40, 0 to 50, or yes, we suggest it's, you know, six months, three months to, you know, a one-year program with an extension period for another couple of months or so and setting up criteria. So I think, you know, I don't want to be too prescriptive with, you know, setting, you know, parameters and regulations, you know, right now, but at least giving them the leeway to go and figure things out and then come back to us. And, you know,

[03:21:18] I think this is, and again, this is not a voucher program. This is a rental assistance program that can help support our current renters so they remain close to their jobs, close to their families and friends, and which supports what will continue to support our economy because if we have the more people in the county living here, working here, they'll spend their dollars here in the county, and obviously we'll get some tax revenue from that as well with personal property tax that they might pay for their vehicles and other items that they have that we, that we put a tax on. Um, so, uh, you know, again, this is, as has been mentioned, this is not the end all be all, but it's an added tool

[03:21:55] to the \$30 million plus that we've added to other housing, uh, programs that we've had, which I think this is a good thing. Um, and, um, you know, I want to make sure we are able to help our County workforce, uh, the backbone of our County and try not to lose anybody else, moving away from our area, but have them stay here.

[03:22:17] As we've heard, some folks have been here for 10 years, 15 years, et cetera. This is obviously not just gonna possibly help those with the strenuous circumstances that happen with the folks at the Leesburg Mobile Park. Obviously that's just one scenario and it's obviously not everybody's scenario, but this could help a lot of folks in the county who have a lot of different situations and issues going on in the county.

[03:22:44] So hopefully you can pass this, and thank you. Thank you. Ms. Umstead. Thank you, Madam Chair. I have a friendly amendment that I hope my colleagues will accept. I move that the Board of Supervisors amend the following bullet points in the criteria for county staff to consider in the staff report.

[03:23:08] amend bullet 2 on page 3 to now read, there should not be a minimum income requirement, and amend bullet 5 on page 3 to now read, direct staff to create a qualification preference for citizens.

[03:23:33] So those have been presented as friendly amendments? Would you accept that as a friendly? No. Would you accept that as a friendly? No. No. Okay. then I'm going to, would you like to make a formal amendment?

[03:23:50] Yes, ma'am. Let me do something first. Let me go on and let everybody else speak on this motion and then go back and do that, and then we'll vote on your alternate motion first, and then we'll go to the main motion. Mr. Kirshner. Thank you, Madam Chair, and thank you for the work my colleagues have done.

[03:24:07] They clearly care a lot about housing in this county, as I think we all do. I think we just kind of approach this in a little bit different way. I do, and I appreciate that we want to help folks who have fallen on hard times, and I appreciate how expensive rent is.

[03:24:23] I know how expensive housing is as a whole. I think our approach probably is, this is not my preferred approach, and so that's probably why I'm not going to support this. It's very different than what we do for affordable housing. Obviously we have a responsibility as taxpayers to ensure that we're providing services, but when we're dealing with housing or providing loans, those obviously are loans that are being paid back through our affordable housing. This is actually a form of a welfare program, and there's, you know, welfare is something. I believe there's certainly a safety net that local government plays, but I think it's a pretty limited safety net. And what we're talking about

[03:24:58] here is creating kind of really a permanent fund or whatever, and I think probably this is a lot better done as the way we've been doing it if we're going to provide this, and that is through our nonprofits, honestly. Again, I'm not a big fan of ongoing permanent government programs that continue to fund these things. We always have flexibility with funding our nonprofits. They have ability, and I think quite frankly, they probably do a lot better job and a more efficient job of providing these needs to our community and want to continue to encourage. It doesn't mean they can't do it, but again, we're now beginning by, I think, starting a program to

[03:25:35] supplement some would argue supplement but actually replace the kind of the work that they're doing um and i just think that's probably the the wrong approach um i would i would much prefer and i understand we're almost at our arpa funds are kind of ending but as when we take up the non-profits or we look at this we could decide whether or not to uh when there is a need on you know and those needs change and shift from year to year um i'd much prefer that to do that through the private sector as opposed to the public sector. So I do appreciate Supervisor Umstead's motion. I think it is important. I did, I did take note that there were no minimum income

[03:26:12] requirements, no work requirements, also no citizenship requirements or considerations in the motion. And I do believe that there should, some of that should be, I understand it's the very beginning stages, but I still, given my previous comments, would probably not tend to support this in the approach that we're taking here.

[03:26:32] But I do applaud my colleagues for their concern. I do applaud my colleagues for certainly trying to make people's lives better. I just think we should take it in a different way. Thank you. So I'm going back to Ms. Umstead in just a second. So there are a lot of programs that help with people who are in what is called the affordable housing range.

[03:26:55] The reason I say it should be 0 to 30 percent is because technically 0 to 30 percent is low-income housing. 30% or about 35% to about 85% is affordable housing; 85% to about 100% is workforce housing.

[03:27:12] And there are a lot of programs already for affordable housing. There are almost no programs for low-income housing. So I didn't just pull that number off the top of my head. It's because that is the hardest income rate to find any programs for or to help is with people when it's a deep affordability of 0 to 30%. That's why I set that number. That's the first thing. The second thing is I'm literally reading what the packet says, and it actually

[03:27:46] says every six months they will come back and be re-qualified, and so that's what it says. So I'm fine if that's actually the language we're going to use, that every six months to come back. I'm fine. I'm fine with that language. Finally, I want to also remind everyone that people see the term non-citizen and they automatically jump to somebody here in undocumented status. There are people who are not citizens who are in this country legally. There are people who have work permits. There are people who have student permits. There are a lot of people, especially our students, who are absolutely in this country legally, but they're

[03:28:26] not citizens. So I think that when you see not citizen, I hope that people are not jumping to where they are here undocumented. But I will also say this. It is so much more expensive for someone to lose their home. So much more expensive. It is much less money to keep a family or keep a person in their home. It is penny wise and pound foolish not to figure out how to help people stay in a home than to figure out how to get all the services needed for somebody who is homeless, especially if they are homeless with children. So if we're just talking about

[03:29:05] money and nothing else, just talking about funds and nothing else, we're not a county that's going to let children be on the streets just homeless. We're not those people. So if we're going to do this in the most costly way possible, we should actually do something that helps people stay in the homes that they're already in. That costs much less money. So sometimes it's think about the long term. And finally, I spend a lot of time with our nonprofits. They will tell you there is no way that there's enough nonprofit money to do something like this. It just doesn't

[03:29:43] exist. If they did, they'd do it. That possibility is not real. You had a, you missed, before, because we don't need to have a closing because Ms. Umstad is going to go to alternate motions, and so would you like to make the, and then we will have a discussion on alternate motions, depending on what happens to those, we'll go back to the main motion.

[03:30:07] Yes, ma'am. You can make them together, as far as, you can make them together unless somebody wants to split them, you can make them together. All right. I would like to make an alternate motion. I move that the Board of Supervisors amend the following bullet points in the criteria for county staff to consider in the staff report.

[03:30:24] Amend bullet two on page three to now read there should not be a minimum income requirement. Amend bullet five on page three to now read direct staff to create a qualification preference for citizens. I'm actually going to ask to split those motions because I would, yeah, I'm going to split those motions.

[03:30:41] So let's start with the one where there will not be a minimum income requirement, and I will second that. All right. All right, discussion on that. All right, well, this motion would remove the language about not requiring a work to be part of this program.

[03:31:04] I have quite a few constituents with adult children who cannot afford apartments in Loudoun County. They live at home with their parents. Two of them are Latinos. One of them is African American.

[03:31:23] and, uh, two others are, are white. They work full-time jobs, and yet they cannot make enough to afford their own apartment. They would love to have their own apartment. Um, but I do believe if you're going to qualify for this kind of program, you should be working. Um, now that work can, can take the form of potentially studying or volunteering, but I don't think you should be

[03:31:56] at home not working and have the taxpayers paying for that. So that is why I removed the language about no work requirement from the first bullet. I'm sorry. I misunderstood what that was. I thought you said no minimum income requirement. So the original motion included both The no minimum income requirement and the original motion that Supervisors Brisbane and Sains put forth also said there would not be a work requirement.

[03:32:34] What motion, I'm sorry, just a point of clarification because I second it. I need to understand what I just second. Is this right now the motion, this motion is no minimum income requirement and that's all this motion is? That's all. it eliminates the no work requirement language.

[03:32:52] Oh, I didn't understand that. She wants a work requirement. I misunderstood that. I misunderstood that. I'm sorry. Oh, gosh, this has never happened. Robert's Rules of Order has nothing for it. I'm going to remove my second. I misunderstood that.

[03:33:09] I'm going to remove my second. Mr. Letourneau is going to second that instead. All right. Okay. I'm sorry. I apologize. Okay. I think that's my opening. Okay. All right. Discussion on that motion. Ms. Bricksman.

[03:33:24] Thank you, Madam Chair. We purposely put there should not be a minimum income requirement or a work requirement. These folks that apply for the assistance will have their income evaluated because we will have criteria in the program, whatever we decide, once it comes back, whether it's zero to 30, zero to 40, zero to 50. So it will be evaluated. Also, these are working families.

[03:33:58] And to buy into the stigmatization of folks who need assistance, that they might be sitting at home, not working, waiting for a check from the government, is disgusting to me. We have heard these families come and talk to us month after month after month and tell us how many jobs they work, how many homes they clean, how much rent they have to spend. Some of them have gone from

[03:34:30] \$600 a month to over \$4,000 a month. Many have been ripped from their communities. And this continues. It's not just the trailer home in Leesburg. It's not just the trailer park. It is people who clean our homes, who wait tables, who clean the offices, who clean the restaurants, who are trying to raise their children in a community where the schools are excellent.

[03:34:58] They want to stay here, I can guarantee, because the schools are excellent. So I am sorry. I have to push back on the idea that these working families, we need to get into their business about how they're bringing home a paycheck or not bringing home a paycheck or whether they lost their job for one reason or another.

[03:35:21] It's not dignified. It's not humane. And to me, it's not ethical. We either decide as a county that we're going to help working-class families or we don't and if there's any county that has the ability to do it It's ours. I won't be supporting this motion. Thank you Motion miss miss miss. I'm sorry. Give me one more thing Will you just read the motion again because I want if I I am sorry that I was well I did read it, but she changed it. That's and is it here. I'm sorry

[03:35:57] Okay, it's on page three of the item the bullet. She's trying to change well, but I put her motions on page three So really it's it's what she at which he took out not what she put in correct. Okay. All right That's why it was okay. All right, so the motion was made by Supervisor um stat and Seconded by Supervisor Letourneau. Thank you supervisor Letourneau All in favor please say aye aye opposed

[03:36:26] That motion will fail, 5-3-1, with Mr. Letourneau, Mr. Kirchner, and Ms. Umstad, and then Mr. Turner being off the dais. So that was the first motion. Would you like to make a second motion, ma'am?

[03:36:43] Yes, ma'am. This motion, I move that the Board of Supervisors amend the following bullet points in the criteria for county staff to consider in the staff report. amend bullet five on page three to now read direct staff to create a qualification preference for citizens. A motion is made and seconded by Supervisor Kirchner. Discussion on the motion.

[03:37:07] Ma'am? Yes, ma'am. So we know that the folks in this room all work hard, which is why I think a work requirement is not an insult. In a way, it honors them because we assume they work hard and they do we have folks who are citizens latino american citizens who work hard and they have gone

[03:37:45] through the effort to become citizens and they live in this community and they are not able to make enough money to afford housing i think we owe those folks an initial preference that if you are citizen whether you are Latino or African American or Indian or white you you would get a preference for this kind of assistance it does not preclude non-citizens from receiving these funds but if two people in an equal position

[03:38:25] come to the county for assistance and one is a citizen and one is not I believe the citizen should receive a preference. Thank you. Can I have a point of clarification? So are you saying citizen, or are you saying someone undocumented?

[03:38:45] Because again, what if they are here on a work visa or a student visa? A permanent resident. A permanent resident visa or something like that. So certainly under HUD guidelines, you could be a green card holder and qualify.

[03:39:04] Or you could be a citizen. You could not be undocumented to qualify. Now, this is simply to give a preference to people who have gone through either our citizens or have gone through the process.

[03:39:20] It does not preclude non-citizens from getting assistance. But if two people in equal situations come forward and one is a citizen, then I think that individual should get preference. You're my time.

[03:39:36] It was just a point of clarification. You're good. Thank you. Discussion on this motion, Mr. Sainz? Thank you, Madam Chair. Could I phone a friend and ask a question? No, you cannot. Not that the friend is staff. No, you cannot. No, you cannot.

[03:39:53] The reason why I asked that question is to ask what we currently do with how Loudon Cares does the ARPA. But okay. Well, thank you, Madam Chair, for the denial. But no, I cannot support the motion. I get what Supervisor Adams is trying to do.

[03:40:10] You know, I appreciate what she's trying to do. But again, I don't want to be too restrictive with staff. Let them go do their homework and come back with best practices. And then we can really fine-tune it once they come back with the criteria and everything.

[03:40:28] So I will not support the motion at this time. But thank you. Ms. Bricksman, could you're speaking on the motion? Yes, ma'am. Yes. So I won't be supporting this motion either. Gaining everything that Chair Randall said, I'm just going to, what did Tony used to say when, oh, I associate myself with everything she said about folks who could be here legally, even though they're not citizens.

[03:40:57] But also, it's not always just a matter of effort to get your citizenship. I mean, you might need legal representation. You might need money. You might have to, you know, resources, and you might have to pay a translator. And, you know, whether they're citizens or not, if they're working in the community, they are paying taxes.

[03:41:18] And so this is their tax money, too, in my mind. So that argument falls flat for me as well. But also, even giving a citizen preference right now makes me very uncomfortable because I would surmise, given what's happening in the Sterling Immigration Court right now, where you show up for your hearing under the threat of being taken away by ICE, how do you expect someone really to be getting their citizenship right now?

[03:41:50] I wouldn't blame people of this community for kind of dropping that process at this point because of the unconstitutional, heinous acts of the mass deportation effort by this administration. So right now, I can't support any sort of preference for citizens.

[03:42:09] Thank you. Again, I think we're mixing words when we say citizens. If we mean undocumented, we should just say what we mean, because you can absolutely be here legally and not be a citizen.

[03:42:25] You can be here legally for years and not be a citizen, so I think we're messing with words here. Having said that, I don't know that a child who is a legal citizen, but his parents may or may not be undocumented, I don't know if that child's any less hungry when he's hungry to parents who are documented.

[03:42:44] I don't know if that child's any less cold when he's cold because his parents might be undocumented. I don't know if that child needs to have any less education when he needs education because his parents might be undocumented. I don't think any of those things are real. I don't think that child is any less valuable because his parents might be undocumented.

[03:43:03] And quite frankly, oftentimes when we're talking about this, we're talking about people with children, and the children are citizens. They are citizens. The 14th Amendment still applies, and those children are citizens. And so do we just look at the whole family?

[03:43:20] Do we look at the one person? Do we look at one person in the house? Or do we look at human beings with a need? Because if we're looking at human beings with a need, I don't know how I measure that hungry, cold child against that hungry, cold child, that kid's parents documented, that kid's parents are not.

[03:43:41] I don't know that I can do that. I don't know that I would do that. I don't know that I want to do that. So I think that we are playing with words and not saying what we might really want to say.

[03:44:01] But I really, really, because we're talking, we are going to be talking about families with children. And the children are citizens. So how do you parse that out?

[03:44:16] How do you parse that out? I don't know how you parse that out. I know that I don't have to parse that out because I'm going to go hungry, cold child, let's feed him, let's house him. Boom. Would you like a closing, Ms. Umstead?

[03:44:36] No, I think I've said what I need to say. Thank you, ma'am. All right. Motion was made. Did you second that, Mr. Kirshner? Motion was made by Ms. Umstead, seconded by Mr. Kirshner. All in favor, please say aye. Aye. Opposed? Aye. That motion will also pass 5-3, I'm sorry, fail 5-3-1 with Mr. Kirshner, Mr. Letourneau, and Ms. Umstead voting for the motion, and Mr. the other guy being off.

[03:45:05] I'm so tired. I am so tired tonight. I'm so tired tonight. Mr. Turner being off the desk. All right, we're back to the main motion that was made by Supervisor Brixman, And I believe what I did on purpose was let everyone speak on the main motion so that I could follow that before I went back to Ms. Rixman for a closing.

[03:45:32] Thank you, Madam Chair. I think that we have pretty much discussed everything that we need to discuss. And again, Madam Chair, I could not have said that better than what you just said about how we are going to assist people, no matter their color, their language, their their preferences their religion all those things so I appreciate all those comments I want to appreciate New Virginia majority for sticking with this and for talking through all of this and appreciate Supervisor Sains for for

[03:46:07] working with me on this and and taking the meetings with me and our staff as well the county staff but also our office staff everyone worked really hard on this over the last couple months and I just want to say a few words of appreciation for that and i hope that my colleagues will support the final motion thank you okay i'll call for the vote but once again say i'm sure the county staff didn't work too too hard because that would be tasking and not asking and they wouldn't do that i'm sure they wouldn't i'm sure they

[03:46:38] wouldn't sure they wouldn't at all sure they wouldn't all right um motion was made by supervisor Brick's been seconded by Supervisor Sains on paper say aye. Aye. Opposed? That motion will pass with Supervisors Letourneau, Kirchner, and Umstead voting against the motion and Supervisor Turner being off the dais. All right Supervisors let's go on and do the Banshee Reeks item because we again we can we can can we go right to a motion. How big is Banshee Reeks? That's from

[03:47:17] is humongous is it both of your districts it might actually bifurcate your district i'm serious too is it fully well you know got the geese oh my god yeah all right i'm tired we all are okay i got over four hours last night

[03:48:22] we will go to a motion very quickly let's just do this if you have any updates let let us have those and then we'll go to mr crony for a motion chair randall and board members we do not have updates to the item we are ready to go to a motion and answer questions if need be and that right there you know i'm going to say right that's one of my favorites mr crane would you like to have a motion just just keep doing that keep doing that all right i'll i'll make a motion the staff motion

[03:48:58] i move that the board of supervisors adopt the amendments to the addendum to the banshee reeks master plan as shown in attachment five allowing for equestrian usage on the 8.3 miles of trails reflected in attachment one and direct staff to perform the necessary work on the trails to meet prcs

standards for equestrian usage second oh whoa okay then mr mr kirschner seconded that discussion third discussion on the motion discussion on the motion i want to thank the

[03:49:37] equestrian community for coming out and um speaking about this and and all the trails people um this is a multi-use trail you know we're creating this for um to include equestrians you know that that was part of the lpat to begin with was to make sure the trails are inclusive for for different uses and so you know the questions have been waiting for this for a very long time i think miss fultman said 20 years i don't know if that's true but wow that's a long time

[03:50:10] I was happy to see the Virginia Outdoor Foundation, you know, sent a letter in to staff in March this year saying that based on our analysis, VOF finds the proposal as presented consistent with the terms of the recorded open space easement.

[03:50:29] No additional buildings or structures are required, and the improvements necessary to facilitate equine use on the existing trails are minimal. DOF will continue to monitor the property to ensure compliance with the terms and restrictions of the open space easement.

[03:50:47] So that's great news that they sent in that letter. 8.3 miles is meaningful for the equestrian community. I think four miles was too, it wasn't as meaningful for the equestrian community.

[03:51:02] So I'm so glad we got to 8.3 miles. I heard some of the speakers tonight concerned about safety. uh i think we can take care of that i know i know um prcs staff will make sure that everybody is safe and i believe the trails will be widened so that they're not as narrow or at least yes exactly there'll be enough wit there to for multi-use right so that everybody can enjoy the trails So I'm very excited that we're here today. I think we can all share in the nature preserve.

[03:51:42] You know, being exclusive doesn't make sense. The nature preserve, there used to be horses there years ago at this property. So it's a good fit. And I look forward to welcoming equestrians and having a ribbon cutting at the end of the year. Hopefully that's possible. That would be great.

[03:52:00] thank you thank you with the seconder of the motion they would like to say anything i had my light on that means yes uh first there's a lot of people to thank i don't have to go through the whole but i do want to thank parks and rec and all your work i know this probably came up what two years ago at this point maybe it's three years ago i i honestly don't even remember i think may have been in my district at the time but i know um i know uh supervisor attorney staff my staff i know has done a ton of work on as well as as have i we've met um with a number of the equestrian folks um and Kelly Fulpin I know she's been very involved in this so

[03:52:37] thank you Kelly and your your team out there for all your hard work on this I mean one of the reasons I'm such a big fan of this and I know there's some concerns have been put out just as in a second but our equestrian community is such a huge draw to Loudoun County especially the Western Loudoun providing opportunities like this for them just helps to solidify not only our messaging to them that we love you here, we want you to continue to grow and thrive, but we don't want to provide opportunities for you to come and do trail riding, exercise your horses. You know not everyone has eight and a half miles they can ride on quite frankly, and you know we opened up the state park, we're working on more

[03:53:16] trail, we're working on you know the access to those trails, this is just another opportunity and I think it's really important that we continue to do this as a county because it does bring not only economic development, people to County they spend their money we love having them here and we and we love the

community for those folks who are concerned about this I do think that you know that the the equestrian community will be a really strong partner with you they will work to continue to keep Banshee Reeks clean and up kept and obviously having Parks and Rec involved in this upkeep is really important as is included the motion so I know you're gonna come and ask for more staff for

[03:53:55] these things we're adding to you as as chair randall's chair randall's favorite department and and favorite head of the department and i and i do i ask those from the equestrian community i think chair randall she whispered to me earlier she really wants a tour on a horse here at baichi rigs for the eight and a half miles so let's be real the one thing chair randall can do is ride oh there you go well we'll get her outdoors i'm from colorado yeah howard johnson right but thank you very much for all their work and thank you for everybody that did it i'm excited and yeah Yeah, I'd love to come to the ribbon cutting.

[03:54:24] Thank you. I'm going to make a bet that I've probably been on horses well more than anybody on this dais. I'm from Denver, Colorado. I grew up in a family from Montana, so I might have you be. Okay, maybe that. My father used to ride a school on a horse. Okay, and I didn't do that. Okay, yeah. I didn't do that.

[03:54:41] How big is Banshee Reeks by acreage? Which is the acreage? Approximately 700 acres. Approximately 700 acres. And we're talking about 8.3. So some serious things. One, I have a lot of respect for the Friends of Banshee Reeks.

[03:54:58] They have, I mean, the commitment to this natural park in our county has been just unmatched. They fight for it with everything they have, and I appreciate that very much.

[03:55:15] I do hope that if this motion passes, what they will do is partner with the equestrian community and Loudoun County to make sure as much as possible, because some of the things discussed today actually don't happen or don't take place.

[03:55:31] So in no way, I hope, do they think that they are being dismissed in any way. I have looked at this map many times, and for the most part, it is a lot of perimeter riding. I'm actually way more concerned about the drones in Banshee Park than I would be about horses in Banshee Park, to be quite honest.

[03:55:52] the drone thing. I don't get that at all. One of the questions I do want to ask, and I did get, and I think it's a valid question, is we do have this huge issue with invasive species. Do we believe that this could make the invasive species, the invasive insect problem, or species of trees, worse because we know that both on their fur, on their tails, on their hooves, that a horse might carry something. Is that something that we're concerned about at all?

[03:56:19] And if we're not, that's fine, too. Overall, I have been talking to Ms. Foltman about this probably for the entire time I've been on the board, to be honest. So she's not quite 20 years on the board, but it's been 10, though.

[03:56:37] She has been, you know, as much as Banshee Reeks has been concerned about the park, Ms. Fultman, I think, I mean, if you have people, equestrian people are by their very nature naturalists. They are environmentalists.

[03:56:53] They do not, they would not want to see a park like Manchee Reeks harmed in any way. And I don't believe that they thought it was going to be harmed. They would be pushing for this. That's just who

they are. I mean, they come in here and the environmental concerns they push for just as much as anything else.

[03:57:13] So I don't believe this is going to harm the park. And I certainly hope that the people, the Friends of Bantry Ricks right now partners with us. But is there any concern at all? By the way, thank you to the equestrian community as well.

[03:57:30] Is there any concern at all around the invasive species discussion? Not around the invasive species discussion, Chair Randall. We do, with any of our trails, we always have a concern of safety for all of our trails, which is why we try to monitor those trails, which is why there are times where trails will periodically be closed down.

[03:57:55] We've seen that at Franklin Park, we've seen that at Bless Park, not specifically to equestrian use, but just to use. And so there are times when we will do that. and I know that there was one trail at Bless Park recently that was closed for almost a year.

[03:58:13] As we let that trail come back, and that's just a part of trail maintenance and trail management, we do plan on these trails, the 8.3 miles of trails to follow what that standard is that you have in the Linear Parks and Trails plan for reinforcing those for equestrian use.

[03:58:34] We appreciate the volunteer work that has been committed from the equestrian community to help us with that work on those trails. But just like any other trail system, if we monitor and see that a trail needs to be closed down for a period of time, we will do that.

[03:58:52] - Okay, sounds good. All right, Mr. Crony made the motion, Mr. Kirshner seconded the motion. All in favor say aye. - Aye. - Opposed? That motion will pass, 801. Thank you very much. - Thank you. Okay. Supervisors, let's read into closed session. Ms. Bixman, do you have the closed session read-in?

[03:59:13] I do. Are we doing all of them? No. Okay. No, because we're not, because we have a whole long slot of stuff to do. I think we're doing closed session number two right now. Number two? Okay. I move that the Board of Supervisors recess this public meeting and enter into closed session pursuant to section 2.2-3711A7 of the Code of Virginia to consult with legal counsel and staff members pertaining to actual improbable litigation involving application of Toll Road Investors Partnership 2 LP for an increase in toll rates for the Dulles Greenway.

[03:59:53] Motion has been made and seconded. Discussion on the motion? All of the people please say aye. Aye. Any opposed? I must have passed 801. Leo, do you think we can do three while we're in here too? Okay, would you reason the number three as well? Sure. I move that the Board of Supervisors recess this public meeting and enter into closed session pursuant to Section 2.2-3711A7 of the Code of Virginia to consult with legal counsel and staff members or consultants pertaining to actual or probable litigation involving the Aspen to Golden application before the state corporation commission should it made is there a second apologies that that's a

[04:00:32] mistake in the motion it should be mars to golden it should be more wondering okay correction mars to golden all right mr cotone has seconded that discussion on that motion all people say aye

[04:00:42] any opposed that motion will pass um 801 we are in closed session out of this closed session

[05:12:05] which we will do right now miss brixman would you please read us out of closed session Yes, Madam Chair. I move that the closed session be adjourned, that the Board of Supervisors reconvenes its public meeting, that the minutes of the public meeting should reflect that no formal action was taken in the closed session, and further move that the resolution certifying the closed session be adopted and reflected in the minutes of this public meeting.

[05:12:30] motion's made and seconded um discussion on the motion i'll feel please say aye aye any opposed that motion will pass 8-0-1 i think we have one motion out of closed session mr luther you need to affirm madam chair i'm sorry yes affirm affirm affirm oh affirm i affirm as well we are we really are we're we're yeah we really are we have one motion at a closed session. Thank you, Madam Chair. I move the Board of Supervisors approve the

[05:13:09] County's participation in State Corporation Commission Matter PUR 2025 00191 regarding the application of Toll Road Investors Partnership 2 LP for an increase in the maximum tolls on the Dulles Greenway. Second. Motion to be made and seconded discussion on that motion. Thank you, Madam Chair. This motion is to approve the Board's formal participation, the County's formal participation in opposition to the Greenway's proposed rate increases once again I will remind the public that the board previously participated in the

[05:13:44] Greenway's last application successfully and was able to prevent rate increases from happening unfortunately the Greenway like a zombie is back asking for more and more rate increases once again we believe the facts will show that higher tolls materially discourage use of the road which is in fact the statute it is the standard by which the state corporation Commission will decide the case so the county's formal participation will allow us to participate in the hearings as well as the case there will be a public hearing for members of the public locally here in Loudoun County which I encourage all

[05:14:22] citizens and I know my colleagues to attend I do want to madam chair just use my remaining time to correct the record because it seems as though one of the members of our delegation, Mr. Reid, would like to convince the public that it's somehow the board's fault that the Greenway has once again requested a rate increase because we didn't support his quote-unquote bipartisan agreement that he says would have lowered tolls. And the reality is, what his agreement would have done is allow for the state to have a private negotiation with the Greenway without the involvement of the county and our citizens, and there would have in

[05:15:00] fact been a small immediate reduction in tolls, followed by an extension of the concession so that the Greenway would have controlled their property for decades longer than what the current concession is, and with no agreement whatsoever on future rate increases.

[05:15:17] The only thing that the public needs to know to be able to judge exactly who's at fault is that the biggest proponents of Delegate Reed's bill are the biggest proponents of was the Greenway itself. All over the General Assembly, working every single member of the legislature, just ask them, they'll tell you, they were worked extremely hard in favor of Delegate Reed's bill by the Greenway.

[05:15:38] That was the proponent. That's all you really need to know about who's actually trying to protect the citizens of Loudoun County from rate increases and who's just playing politics, which I'm kind of sick of. Thank you, sir. Any other discussion on the motion? All right.

[05:15:56] Seeing none, all of you please say aye. Aye. Any opposed? That motion will pass 801. All right, supervisors, let's do board comments right now, please. And let's start with Ms. Bricksman.

[05:16:20] Thank you, Madam Chair. By way of disclosures, I had a conversation with Colleen Gillis and Molly Novotny on April 30th about Cochran Tech Park. on may 4th i had a conversation with jonathan garber of falcons landing on their forthcoming expansion project i will continue with falcons landing we were able to present them with the 30th anniversary proclamation this week which went very well and we got a tour of the facility and looking forward to their application

[05:16:59] for expansion um let's see chair randall already talked about our credit rating meetings recap so those were enjoyable as well this is the first time i think since i think they said 2015 that they actually came down here and they toured around the county and we had meetings over the economic development building i think that our presentation was well received and as the chair said we will have the results around may 11th or maybe a little later this weekend we did the second annual biking with briskman we did eight miles very casual eight miles and we got to see where

[05:17:37] some new housing projects are going in the county's new group home that recently was completed and i wanted to thank parks and rec for having someone down at bless park so that we could learn about the new renovations in bless park and get some a little bit of swag that has a new parks and logo on it so that was fun. I want to thank the sponsors Bike Loud and Route 7 Brewing and Maverick Bikes. I had the opportunity to go to the New Virginia Family Services Celebration of Service event at the Barnes at Wolf Trap on Friday night and was really excited to see them because their

[05:18:13] Ashburn Child Care Center is opening in a matter of days. They'll be holding a ribbon-cutting and also they were very excited to talk about the Child Care Fee reduction program, which they do administer. And so they were really, really excited that that program is going to continue so that they can support families with child care through our program. By way of the gun violence archive, we have lost 4,268 lives to gun violence so far this year. Our nation has experienced 134 mass shootings, 279 of the deaths were children ages 12

[05:18:51] to 17, and 76 were children under the age of 11. Thank you, Madam Chair. Thank you, Mr. Crony. Thank you, Chair Randall. Let me get to my okay. Disclosures on April 27th. My staff attended a pre-meeting on Badly Lane. On April 30th, I met with representatives from NOVAC regarding the Demos substation. On May 5th, my staff spoke to a representative from NOVAC regarding the Demos

[05:19:27] substation. I want to thank staff and the county's attorney's office who provided an in-depth analysis and justification for positions in the staff report for the Western Loudoun uses and standards CPAM and ZOAM. Your deep dive helped me and my colleagues understand the complex issues.

[05:19:49] The county's attorney's office presented an analysis of the legal precedent regarding local zoning and state code. The legal review clarified points of confusion that have been misinterpreted for the past 10 years, and I really want to thank Jason for all his hard work and the planning and zoning staff, Judy and Brian.

[05:20:10] I'm proud of the collaboration we achieved at TLAC with stakeholders, residents, and organizations. While I am disappointed by some of the decisions from last night's board meeting, I remain committed to protecting Western Loudoun's rural, historic, and scenic character while achieving a balance between rural economy uses and neighboring residential uses.

[05:20:31] After years of public input, we still have an opportunity to restore balance as the item moves forward to the Zoning Ordinance Committee and Planning Commission. Western Loudoun can support rural businesses without sacrificing rural residents, public safety, rural roads, or the agricultural and scenic character that the comprehensive plan is intended to protect.

[05:20:55] And I want to thank everybody who participated in the process. So far, we went very late, so I didn't get to thank everybody. And please continue to stay engaged. Your voice makes a difference. I want to give a call out to Bill Hatch from the Loudoun Wineries and Wine Grows Association who spoke tonight about the vineyards that suffered multiple freezes in April.

[05:21:17] I heard you that variations in elevation and terrain can make a difference. Just wanted to let the public know that Bonafide Ags is exempt from the Mountainside Overlay regulations. You can have farming and protect our mountainside. Congratulations to my two daughters.

[05:21:35] They'll both be graduating this month. Charlotte from Duke. She's graduating and getting a master's and Lindsay from Virginia Tech. So it's going to be a fun graduation month. Thank you. Thank you. Congratulations. Thank you. Congratulations. Um, Mr. Umstead. Thank you, Madam Chair. Um, I have one, one disclosure. On April 30th, I met with Aaron Swishelm and, uh, Ron Meyer on the SDC Ashburn One Project.

[05:22:11] no board comments in light of trying to get you guys out of here earlier rather than later so thanks miss glass thank you madam chair i have a number of disclosures march 12th my staff spoke with representatives just to discuss kcg brambleton community park west on march 12th my staff spoke with representatives to discuss the concord application also they spoke my staff spoke with with representatives to discuss the Quantum Park application. March 13th, I met with representatives

[05:22:49] to discuss the Quantum Park application. Also on March 13th, my staff met with representatives to discuss Concord Industrial Park. March 25th and April 1st, my staff met with representatives to discuss the firehouse substation. April 1st, my staff met with representatives to discuss the Bramilton Park East Housing application April 1st. My staff participated on the online BCO to Firehouse Transmission Line Project Community Meeting April 9th. My staff met with representatives

[05:23:24] to discuss the Valley Commerce Center application April 16th. My staff met with representatives to discuss the Quantum Park application. April 16th, my staff spoke with a representative from Dominion Energy about the Aspen substation. April 28th, my staff met with representatives to discuss the Quantum Park application. And May 5th, my staff met with representatives to discuss the SDC

[05:24:00] Ashburn 1 special exception as you all can see there are a lot of disclosures that I had because I had been out for a while I wasn't going to really discuss it but it may help someone else and that is that I had a mitral valve repair and and I was gone out for about a month.

[05:24:35] My doctor says that my heart is perfect now. So I just am thankful. I'm thankful for the staff at Inova Loudon and Inova Fairfax.

[05:24:55] They were absolutely awesome. The nurses there were awesome. Just everything, I didn't feel like I wasn't going to get the care that I needed.

[05:25:13] I got the absolute best care. I just want to thank my colleagues for their prayers, for the food brought to my home, because my boys really ate it up. All the love and care that I felt from you all, thank

you.

[05:25:32] I want to thank my staff, Kent, Abby. I wasn't going to cry. Yes, you were. And Yolanda. They are just the best.

[05:25:48] And I didn't feel like I needed to bother about anything because I knew they had everything in control. And my time is up. Thank you. Ms. Glass, your heart has always been perfect. It's just now functioning perfect.

[05:26:05] It's always been perfect. Mr. Letourneau. Thank you, Madam Chair. We're glad to have you back. Supervisor Glass, I did say to your staff that maybe you should have waited like one meeting to come back, given that last night went a little bit late.

[05:26:21] But we're glad to have you back. I'm not going to make any further comments. I said enough on the last motion. I will say just by way of disclosure that I received a call from Ron Meyer of SBC related to the Cochran Tech motion that's tonight, today, this morning, May 5th.

[05:26:46] Mr. Sainz. Thank you, Madam Chair. mandatory disclosures. On April 27th, I spoke with Todd Pearson of B of Saul about Dulles Technology Park and Dulles North Technology Park applications. On April 28th, my staff met with Aaron Smith-Helm of Waskellucci and Ron Meyer of SDC about the SDC Ashburn application.

[05:27:11] And then today I spoke with Ron Meyer of SDC about Cochrane Tech. And just would like to welcome supervisor glass back to the dais um glad to have you back with us and yeah i'll agree you should talk to your staff about when to come back but nonetheless we're glad to have you here uh with us and i missed uh seeing your smile smiling face and look down the down the way over here mr kershner thank you madam chair first uh supervisor glass welcome back it's good to have

[05:27:46] you i'm glad to know that you're better you're sitting here to the right of me and amongst us answer to prayer we're very grateful glad to hear your boys can eat I can relate to that since I have a few of them myself but so it's good to have you back just in terms of mandatory just I don't really have a lot of comments just one or two brief but in terms of mandatory disclosures my staff met with R&D Hamilton Academy about their application on May 5th and also on May 5th I had a brief conversation actually fourth and fifth brief conversation with taylor chess and also then today ron meyer on the cochran tech application um we are um operating on

[05:28:25] fumes because of last night's meeting till we got home about 1 30 got to sleep about 2 2 30 and got it got up early and litigated all day and we're back we're back at it again so no comments but thank you for all the hard work for um those who put time in on the western louden zoom and we've now moved it on to the next stage so very pleased to announce that thank you madam chair i think I think that's everybody, right?

[05:28:50] Okay, wonderful. On 4/28, my staff met with representatives from Novak about the demo substation. I met with applicants on Leji 2025 on the same date, SDC Ashburn. On 5/4, my staff met with applications on Leji 2025-001, SDC Ashburn.

[05:29:11] And on 5/5, my staff went with applicants on Leji 2023-0097 in Quantum Park, somewhere along that way, I don't actually remember which day, I did meet with Ron Myers, I had lunch, we had

breakfast, and he brought me up on all of his beautiful children and then talked about the Cochrane Tech application.

[05:29:35] We are exhausted, so I won't talk, I'll keep my comments about the Supreme Court's decision on voting until next time so I can just be a little bit more coherent in that conversation because I think it's important for us to talk about it when people start -- when voting -- hard-fought voting rights start to get rolled back.

[05:29:59] I would remind everyone that last night was not a binding motions. It's now -- it's a Roy so now it goes to ZOC and it goes to the Planning Commission. I'll also say, supervisors, you're going to love this. We're going to move tonight's closed session to next Wednesday, is it next Wednesday, after the public hearing.

[05:30:24] And that's because the closed session tonight will probably take about an hour. We are tired, and I don't think we'll do a great job in closed session tonight. So there's only one thing that's not on the consolidated agenda next Wednesday. and so we'll do the, we'll do, we will, tonight I will not adjourn the meeting. I will, thank you, I will recess the meeting, geez, I will recess the meeting tonight and then open the meeting up on public hearing on Wednesday, close that meeting and then reopen the meet, the, the, this public

[05:31:03] meeting go in the closed session come out and then close this meeting out and that's how we do that because I don't think we can get to that closed session tonight I think we're not we wouldn't do it we wouldn't do the item justice and so for all the public and anyone who's here we will move that closed session item into next the next Wednesday I'm sure you're all very very happy about that all right let's really quickly do nominations if you have a nomination please put your light on real quick please miss um stop uh thank you i nominate micah wolham to

[05:31:38] the advisory count commission on youth okay and i nominate uh don knutson to the residential builder developer um single family seat on 8wop all right let's go on then um to the next item our next item will be um item number seven yes safe streets loudon item how you doing supervisors

[05:32:16] this motion this item has 16 slides um that i do not have we seen this we've seen matt um madam chair we have given briefings to a couple of that's right i've seen this i don't think because now they do you want do you want the presentation you've caught us at the wrong I think we probably don't want to present it I think we're I think I think we're fine if that's okay with you I think we're we think we're probably fine do you are there any updates

[05:32:53] you want to give us there are not I'm Heather Deese of the Department of Transportation Capital Infrastructure I'm joined tonight by Kelly Griffin and Everett Lott and we are ready to move forward without the presentation, no updates. Wonderful. I will get to the motion. While I get to the motion, I will say, Heather, I really, really enjoy doing ribbon cuttings or ground breakings with you. You do a great job hosting. You really do. You're fantastic. I did Mr. Percival won, but I did send my chief of staff, and if he's there, I'm there, so it's cool. I move the

[05:33:30] The Board of Supervisors adopt the Safe Streets Loudoun Local Roadway Safety Action Plan as presented in Attachment 1 of the May 5, 2026 Board of Supervisors Business Meeting Action Plan. I further move the Board of Supervisors execute the resolution of support as presented as Attachment 2 of the May 5, 2026 Board of Supervisors Business Meeting Action.

[05:33:52] Motion's been made and seconded by Ms. Glass. First of all, thank you. We have seen the presentation, so just know that. Secondly, thank you for all the work you've done on that. You know, of all the, when I say this all the time, when I came on this board, the number one complaint was streets, whether it's traffic or safety or whatever.

[05:34:14] And because we've hired more staff and such good staff that does great work, we just don't hear those things anymore. And we keep it going. I just mentioned the name, Ron Meyer. I remember when we got elected, Ron Meier ran on Greenway Alternatives.

[05:34:31] Remember that? Greenway Alternatives. And he did, and he, I can actually say, I think I can credit Ron with starting us down this a really good road, and we just keep that going. And so thank you all so much. And I think that's it for us. Yes.

[05:34:46] I wanted to ask a question in the motion. Sure, sure. So we, as you know, we had a town hall meeting with the Sheriff's Office about traffic safety. A lot of the things here to me are also sheriff's office enforcement issues, but specifically on the issue of cameras and the local authority that we do have to impose speed cameras in school zones, which is something I think we should seriously consider.

[05:35:07] But does law enforcement have a point of view on that? Have they expressed one? Would we be engaging with them on that? We didn't specifically ask them their opinion on whether they were going to move forward with the speed cameras. as far as I know they were not going to I haven't we this project did not ask them are you going to move forward with it but it does require the sheriff's office to come forward and move it and then it does require an ordinance to be able to to have the cameras in the school zones and then active construction zones but we can certainly have that discussion separately but I think if

[05:35:44] we narrow the discussion specifically to school zones I think that might be perhaps a little bit more productive. But yeah, I would also just be interested, I mean, in terms of the enforcement side of this, you know, whether there are more resources or things like that that ultimately come from this as a recommendation from us. And then on the funding side, there's Safe Roads for All funding. Do you know how much we've applied for and what we've received or what we might receive? So this grant, this project was funded by the Federal Highway Safe Streets for All grant. We did receive \$464,000, and then the county was required to do a 20%

[05:36:22] match for the \$116,000, and we have not received any additional funding through the program. Do you think we could at some point, or is that it just was just to do this sort of setup and that's it? It was only funded through 2026, and we don't know if it's going to be brought back in the next cycle with the administration. Yeah. If it is, we will apply for more funding, but if it's not then gotcha all right sounds good thanks mr crony so um i also support uh cameras in school zones and i just wanted to let you know that um the town of leesburg did a pilot um and they came

[05:36:58] to the joint committee um i don't know if supervisor glass if you were there that that day um but they came and they said it really worked it really changed behavior it slowed people down So I would definitely want to see that, um, maybe piloted, um, and, and taken to the, you know, at least do what Leesburg did, which is try it out at a few locations.

[05:37:21] Um, it, it did increase safety. So thank you. Thank you. Anybody, anybody else? You know, it, it's interesting because when you talk about, it may be, it may be helpful if, if I, I, I have seen people when they, when they're at a school bus.

[05:37:40] and they're on, like, the other side of the median strip, I don't think they know whether or not they can pass if they're on the other side of a median strip. Sometimes I think, you know, those kind of animated things of how you drive would be helpful. I saw the other thing that we need to maybe animate an animated video on is how to do a roundabout.

[05:38:00] That might be helpful. How to do a roundabout might also be. all the drivers not just not just that was that was not me Percival all the drivers but seriously I mean I know if you know some of these things could be helpful for people to know I don't know if people are always sometimes they're unsafe but sometimes they're just not educated about what what some of these rules are so anyway thank you very much um I made the motion who seconded this motion? Ms. Glass, second the motion. All available, please say aye. Any opposed? That

[05:38:39] motion will pass 8 to 1. The next item is item number 8. It is the Route 50 Safety and Operational Study. Ms. Tacroni, the T-Luck Chair, does have motions on the dais for item 8 and item 9. Ms. Bricksman, as the Finance Chair, I need to step off the dais for just a second. Will you please take the meeting, please? Let's see. This is Dulles and Little River. Do you guys need to see the presentation? No, I'm going to make a motion to move it

[05:39:19] to TLAC for further discussion. This I know. How many slides is the presentation? You've already counted too many. Okay. I think we will. Do you have any updates for us? No, not since briefings we've given to some of the board members. Okay. Colleagues, do you any questions that can't be answered in a motion yeah that's what i was saying if you've motion

[05:39:55] if you have questions any questions that can't be taken in the motion i'm hearing i'm not seeing any go ahead okay yeah i i move that the board of supervisors send item 8 route 15 safety and operational study to the transportation land use committee for further review and i further move that all future safety and operational studies the corridor studies be reviewed by the transportation land use committee prior to being presented to the board of supervisors thank you all right we

[05:40:30] have a motion and a second by supervisor umstead do you have an opening yeah uh i i think we need to do a deeper dive i think that's a bit tuck is a place to um do a deeper dive on this this is actually mostly in my district i think there's a very small portion in the dallas district But I would like to do a deeper dive.

[05:40:51] I would like to take a look at the improvements that are being proposed and review it in more detail than we can do here. We're very tired from our late night last night, and I think TLUC is the place to do that.

[05:41:06] So I'm happy to send it to TLUC to take a look at it and take a look at the improvements. And then, of course, finance would review it for funding and putting it into the PIFD. Thank you.

[05:41:24] Supervisor Kirshner. I need to understand how the logistics on this actually work. I'm not, listen, if the two supervisors from Dulles and Littler ever want this sent, I think there's a motion for the next one. I'm not going to support that. But doesn't this just kind of slow the process down?

[05:41:45] Does staff have any thoughts on that? I mean, logistically? supporters mr. Hemstreet do we yeah so i i think from the staff perspective if the board wants to send us to a committee i think that's perfectly fine i don't know that it really slows anything down my concern is having it reviewed by both committees so if if the board wants it to tuck then i think it's fine send it to tuck but then i i would not

recommend that then we now go to finance because both committees could then alter the scope of the project both committees could do something different that would potentially cause a problem. So these quarter studies have not been

[05:42:24] formally assigned to a committee. Traditionally, they are in the purview of the finance committee. But the board, if you want to change that, I don't really care. I just would ask that we not send it to both committees. So for timing, you can send the committee. So I kind of, that's what I remember from our previous discussion that, and I guess that would be the will of the board, whether it goes to TELUC or finance, I think this is in large part a finance decision in part.

[05:42:52] I understand why Supervisor Crony would like to have some look at this, but I do believe that staff would and does offer briefings on these matters prior to this meeting here at the business meeting before we endorse it or don't endorse it.

[05:43:08] And I would think that as supervisors we could take advantage of that without needing to send it to two meetings, including TLUC and finance. So I just -- listen, I know we like to do two late nights in a row and some other things, and I'm just not sure the efficiency, if there's something specific that Supervisor Tacroni wanted to talk about.

[05:43:33] I think she could figure that out in the briefing and talk to the staff and then bring that to our attention here. I don't think we need to. I think finance is the appropriate place. I don't think TLUC is the appropriate place. would support um just sending it to one so i wouldn't support this motion as it's written or for the next matter as well since especially since staff is not is recommending not to do it to two committees thank you um any other comments i i would go ahead madam chair do you want to take back no oh go ahead supervisor attorney yeah i was i'm happy to defer to supervisor crony on the item because as she said it truly is it's just one intersection in my district and the rest isn't

[05:44:12] hers perhaps though she might want to amend it to move it to one of the one one of the committees and not both um so and i would just yeah okay madam chair are you taking the no no finish you can finish the item i'll take the gavel back after the item's finished okay did you have comments i do um i'm sorry uh i i actually i don't i i don't care if this goes to finance i really don't care care if this goes to TLUC. I do not care if this goes to TLUC at all. That's fine. Tell me why you

[05:44:49] think it should go to TLUC. There are items in this study that I would like to talk about. Like for the enforcement areas, I want to know if there's other strategies. I want to see if there are other ways to have enforcement areas on rural roads that aren't going to, you know, cost us three four five million dollars so i would like to talk about some of the strategies in this study these are really extensive studies i have not had a chance to deep dive and i think it would

[05:45:25] provide an opportunity for me to take a look at it and understand some pieces of it let me just bring the the question back maybe i asked that incorrectly and i'm sorry let's try this again Tell me why you think that TLUC is the better vehicle to do these things with than finance, because I asked you why you wanted it, and so you answered it in that way, and that was my fault.

[05:45:46] I should have asked that differently. Tell me why you believe that TLUC is a better vehicle for an item like this than finance. There is something called transportation in the Transportation and Land Use Committee.

[05:46:02] That is why I want this to go to TLUC, is because there is something called transportation in it. Just funding it without really giving a deep dive. I can tell you, I have two corridor studies that are in my district that I have questions about. So I'm just telling you that.

[05:46:20] So the issue is, it's the T and T luck is that you don't believe that we've had enough things. No, I do not. Enough time to discuss the transportation issues and have a, for a T luck to have a deeper dive in this so it's not just about the funding what if somebody said to you um it it has been looked at already and um it will it will be looked at again what was my said would you still want to go to tuck this study is in my district so i would say it has not been doesn't matter to your district take that part out okay because you're you're the tuck chair

[05:46:57] yeah you're not the chair oh yeah we did talk about it that's true okay however i still believe that there's an opportunity for these studies to go to t-lock to to do what as a body as a t-lock body to look at this um from uh strategic from a methodology do all the improvements make sense not necessarily the funding but more just what is being proposed because i may want to make modifications in mine and in route in the roof and that doesn't and that's not even because i'm sorry

[05:47:36] my time is up i'm sorry thank you thank you for that um okay so i guess i feel like we've had this discussion before um and if mr hemstreet could you please describe what normally would happen with this after it left the board like say the board were to endorse it tonight what would happen next and then what will happen after it goes to TLUC where would it go after that so if the motion sends it to TLUC then it would go to TLUC for review then it would depending on what

[05:48:12] TLUC does it would most likely come back to the board and then head to the CIP to be funded whichever of these improvements are endorsed so the recommendation from staff which is to send certain these improvements to the future budget process and then place other improvements into the intersection i think into the intersection improvement program and so that's that's the recommendation we're at an implementation level and so those operational and implementation pieces typically go to finance but if the board wants to have t look do that then that's perfectly fine

[05:48:50] it would just the mode they would t look would look at it make whatever adjustments they want to make it would come back to the board with a recommendation if it follows the staff recommendation to put the intersections into the intersection improvement program for funding whenever they get ranked and then the balance of improvements would enter to the cip and traditionally it would just go for implementation to finance after whatever the board would do tonight and tonight right when it's on the agenda for the full board that is when the full board can ask questions and or get

[05:49:25] briefings that's correct um i i'd like to split the motion so um we will decide whether item eight goes to tuck and then we will decide the larger question which i feel like we already decided after a long meeting that we weren't going to send every single corridor study to tuck because then we run into the problem of two committees doing things. So, Ms. Tacroni, would you like a closing

[05:49:59] on the first part of the motion? I guess I've split the motion. Okay. The first part is basically sending the Route 50 study, which is largely in my district, to TLAC for further review and discussion um may want to make modifications on implementation i had multiple public input sessions and i thank staff for doing uh public meetings with um the western part of the county they were very vocal about this so i would like to take a closer look at it to make sure it's

[05:50:37] meeting the needs of the community okay so um motion made and seconded we've had discussion on the first part of the motion all in favor please say aye aye any opposed okay so that motion carries 801 with supervisor turner off the dais now the second part of the motion um i'm not going to make it i'm tabling it you're going to table that okay great all right madam chair i don't feel like arguing that all right i'll take the gavel back thank you miss brixman all right i am number

[05:51:08] nine um and that well that's kind of one of the places right there do you want the do you want the presentation i've read through the slide yeah anything you want to add to the presentation that may be new we haven't seen it before no we could get through how many slides is this week okay you want to still lengthy we could do an abbreviated presentation abbreviated it's probably a good

[05:51:43] idea all right turn this over to kelly griffin good evening tonight this is the western loudon north-south rural roads corridor study. What's happening, the impetus for this study was it was brought up during a Route 9 safety and operations study and a group of citizens came forward with a letter indicating their concerns about what's going to happen by the year 2040, mostly in the northwestern portion of the county. And what this map shows you is all of the

[05:52:21] improvements that are coming to Route 7 in the near future. So all those boxes on the bottom are planned projects for route seven which will entice will likely entice drivers to take route seven and then up to the roads that are in this study which i'll get to on the next slide and then that will cause more traffic on the western north south corridors because route seven will take you there faster and an easier route one too many um so the community cerns that

[05:52:58] i just kind of spoke about i'll go through them quickly there are one lane bridges on these roads which are cider mill stony point and woodgrove excess travel speeds increase in traffic on cider mill and woodgrove mainly and then the truck traffic it's hard for trucks to pass cars and there's not enough room so they're concerned about all of those issues on their rural roads so this slide shows you the study corridors on the left is cider mill road in blue at the top of the screen on the right in yellow is stony point road and then on the green is woodgrove road

[05:53:34] and the study purpose was to determine where improvements were needed to prepare these roadways for the increase in traffic by the year 2040. We did collect some data on these roadways the brown boxes are what we collected for traffic data in fall of 2022 in the green boxes that is what VDOT's volumes were estimated for 2040 and it will show there's an increase of three to four percent increase in traffic per year and we did collect speeds on these corridors as well and Cider Mill does have areas on it where we we collected speeds in excess of 10 to 12 miles an hour over

[05:54:12] the posted speed limit. Woodgrove also has a speeding issue of 8 to 14 miles over the posted and Stony Point was it's a tougher road to travel so speeding is not as much of an issue on Stony Point. So we took all these things into consideration. We looked at all the crashes in the area. We looked at the geometry of the roadways and did a systemic assessment based on the crash risk of these roadways and then we also did some existing assessments on the narrow bridges and looked at center lines and edge lines and the warning size for the 18 curves.

[05:54:46] And we also did assessment for locations of speed enforcement pull-off areas. Throughout the process, we did have a lot of input with some technical stakeholders. All of those are listed on the screen. We did meet with VDOT several times throughout the entire process for the study.

[05:55:02] So they were involved all the way. We did meet with the Rural Roads Committee and both the towns of Hillsboro and Round Hill. We had an in-person public meeting in May of 2025, followed up by a survey, which we had 29 responses.

[05:55:20] The summary from the meeting and the survey was for the short-term improvements, most are all supported. The improvements were mainly short-term, low-cost signage striping type improvements. The majority of the respondents for the survey and at the public meeting supported the law enforcement areas and our improvements that we were proposing at Woodgrove Road and Evening Star Drive and then on our long-term improvement it was pretty much even split. So short-term recommendations on Cider Mill

[05:55:52] Road, short-term relatively low cost signage, marking, stripings, trimming, vegetation. Same on Stoney Point, short-term signage, marking, striping, clearing, vegetation. And same on Woodgrove, signage, marking, striping, clearing, vegetation. Those short-term easy to implement improvements.

[05:56:16] We did have a midterm recommendation at Woodgrove Road. We were proposing some pavement striping. It's a little confusing when drivers enter the intersection on the lane markings. There's excess pavement there, and we were proposing to add crosswalks at this intersection to connect the existing pedestrian facilities.

[05:56:37] So the mid- and long-term improvements for Cider Mill Road, we have one proposed law enforcement pull-off area, and then the long-term context-sensitive limited roadway widening, and then replacement of the narrow bridges to meet the pavement width of whatever that ends up being as the design moved forward.

[05:56:57] Woodgrove Road, same things. We have two enforcement law, two law enforcement pull-off areas, and then the same limited context-sensitive roadway widening and replacing of the narrow bridges. This just shows a total cost of the short-term, midterm, and long-term improvements, and the total at the bottom was just a little over \$33 million.

[05:57:22] And our recommendation is to direct staff to move this to a future budget process for CIP deliberation, with the exception of Woodgrove Road and Evening Star Drive, which will be assessed in the Intersection Improvement Program in accordance with the Board's policy. Good recommendation. Okay. Wonderful.

[05:57:39] Thank you. Supervisors, can we ask questions within the motion? Yes. Mr. Kirshner, would you like to make a motion? I would. I move the Board of Supervisors endorse the Western Loudon North-South Rural Roads Corridor Study as provided as Attachment 1 and 2 to the May 5, 2026 Board of Supervisors Business Meeting Action Item and direct staff to forward the recommended improvements to a future budget process for consideration and prioritization by the Board of Supervisors with the exception of the intersection improvements at the woodgrove road and evening star drive intersection which will be addressed through the intersection improvement program in accordance with the board of supervisors policy second

[05:58:16] thank you madam chair and thank you staff for um great presentation a lot of great work when did we start this i remember get yes i remember getting that initial i just was trying to figure out how long ago it was um so this has been a long time coming but i'm really grateful for it And the reason is when I

took the seat in 2020, there were a number of corridors that had just kind of cans had been kicked down the road and whatnot.

[05:58:47] And this is really forward thinking, which obviously 2040 is not that far away. I know I hate to say that, but 2023 was a lot further away than it is now. It just kind of seems to get, you know, we keep talking 2040. We probably ought to start changing some of these talking points to 2045 or 2050.

[05:59:05] But I know on 15, we're talking about 2040, and I'm like, guys, that's 13 years away. So I was looking around. So I think the part about this that I really appreciate is how forward-looking we are. When we talk about short-term, mid-term, and long-term, what are those timeframes?

[05:59:23] Short-term, obviously, in the next year, but mid-term versus long-term, what is that? One to three and then five and beyond, or what kind of timeframes are mid and long-term? well they need to be funded in the cip of course and then heather correct me if i'm wrong but it depends on when you get into design how much right-of-way is needed or public opposition or support for them and then it depends on site by site specific basically do we have any sense of how many bridges will ultimately need to be replaced there are five amongst these three

[05:59:56] corridors five bridges okay and that's obviously a big concern and i miss and how many stakeholder meeting did we ultimately have do you we did one just one we did one public meeting and then one tech i remember attending one or zooming in on one i can't remember but i do remember listening in if i recall or maybe my staff gave me a briefing but so many of these run together anyway thank you for your hard work this is really super important that that area is obviously going to have an ongoing traffic increase in the years to come and i mean we're already seeing it we already have of course the intersection we just did the groundbreaking at um not too far from

[06:00:33] there in Percival off from Hillsboro Road and that of course connects with Woodgrove and all those areas up there so it is seeing an ongoing number of traffic so I appreciate the the forward looking I have looked at I didn't have really any concerns with the recommendations that they came up with I will say on the short term in terms of cutting out the uh the vegetation that continues to be an ongoing issue in western loudness this vegetation just growing and growing and it's hard to keep up with, especially at this time of year as things come out.

[06:01:02] But I appreciate your artwork, and I look forward to asking my fellow supervisors to support this and get this moved forward so we can start working on the budgetary process. Thank you, Ms. Brixman. Thank you, Madam Chair. What is a law enforcement area? So that is a small area, a paved area on the side of the roadway with enough area for a police car to sit and pull over a car, and then you'll have tapers on both sides, just just enough to be able to safely either sit and do radar guns or pull over cars okay and i'm

[06:01:38] gonna bite my tongue on what some people call that um and then what what is what is context sensitive widening so vdot has a relatively new program called con i'm gonna get this wrong they have a context sensitive widening sorry it is mouthful instead of starting a project and vdat saying you have to build to full standards they have a new program relatively new i'm not sure how many projects have gone through it but you start with what you have out there now and slowly

[06:02:15] increase to meet the needs of your project so we were what we were thinking on this one it could be like two to four feet of widening to keep the narrower lanes for speed management and the rural

context of it, but have enough so that it is safer. So we'd have to go through this new program. Okay. Madam Chair, may I ask Supervisor Kirshner a question? Yes. What was the groundbreaking you were at? That was for the intersection at Hillsborough Road and 7, where's the new interchange? Groundbreaking, okay. The interchange that will, there at the far end of Percival. Okay, okay. And then the long-term

[06:02:52] improvements um what was the forecast for getting those done like date wise or do we have that yet we don't have that because it hasn't been funded yeah yeah okay all right i'm good with supporting this thank you mr crony so i'm happy to support the short-term improvements they seem like something that um vdot or dtci could use as quick fixes with contingency funds but i do have a lot of questions about the mid-term and long-term improvements, and that's why I wanted to send

[06:03:28] it to TELOC to do a deeper dive into the recommendations, the implementation. For example, what does modest widening mean? You know, to me, that doesn't seem like that would be in keeping with the rural character of a roadway if we're doing modest widening. I don't know and what that means. And what are the best practices on speed enforcement areas on rural roads? So I have that question. And that's a question I'm going to bring up with the Route 50.

[06:04:03] You know, to have a paved area for speed enforcement on a rural road, I don't think that's context sensitive. And are there alternative options to pull off areas, you know, for in the rural area so um based on that i don't i don't know if supervisor um kirschner if you'd be willing to split out the short term to move those ahead and have a discussion of the mid and long term in tuck no we can have a i would not support that i would say that if you want further

[06:04:40] discussion i would recommend having a briefing with the staff and ask those questions and hopefully get them all answered rather than having send it to tuck well plenty of time because we're going to have to fund those um well this is this is moving it ahead for funding so i believe this is moving it ahead to finance am i not correct for funding okay then i'm not supporting the motion thank you okay we're closing just uh i didn't know you were um just briefly uh just the content sets that widening is actually a really important thing that we're doing in our rural areas i know

[06:05:17] we're working on a number we've had my staff has had a number of meetings um with the design folks on the Route 15 corridor, the Phase 1 and partly in Phase 2, just how we're going to make that look and make it look context-sensitive and continue to preserve the rural area.

[06:05:34] I would assume that the district supervisor can, when we do begin discussing these, obviously I would like my staff to continue to be involved in that context-sensitive discussion because I think we really want to keep an eye on this.

[06:05:51] We try to do that with these new changes, But I'm really glad that the DMV has this new program. I think it's really important to maintaining the look, the feel, and yet also increasing the safety on these roads for folks. We want to make them as safe as possible, but also as enjoyable and as context proper as we possibly can.

[06:06:12] So just to help answer your question about the context sensitive, it's really important. And as far as the pullout areas, enforcements have really, I mean, being involved in law enforcement, Enforcement's an incredibly important part of maintaining safety and the quality of life. Yeah, we don't know if it's like getting pulled over and get speeding tickets, although I found out tonight that the chair has not ever gotten a speeding ticket, so she's going to heaven before I am, clearly.

[06:06:37] My life, never speeding. Nonetheless, she bays the law a little better than I do. Her foot's a little lighter, but nonetheless. Nonetheless, thank you, staff, for all your hard work, and I'd ask for the support on this motion. Okay. Mr. Kirshner made the motion. I second the motion. All in favor, please say aye.

[06:06:58] Opposed? That motion will pass with Ms. Tacroni objecting to the motion and Mr. Turner being off the dais. We have two more items. One's really pretty easy and then we have a motion to reconsider which may take a tiny bit more time. But let's do this first one first because it is very, very easy.

[06:07:20] It's also a BMI from Mr. Kirshner, so as I do in BMIs. Mr. Kirshner, would you like to take a couple of minutes, five minutes to describe what you're trying to do here and then make a motion? Yeah, I can probably do it within the motion, but basically this is a BMI.

[06:07:36] You're talking about item number 12, correct, Madam Chair? Okay, this is a BMI proposal that we adopt a resolution to support designating Old Waterford Road as a Virginia State Scenic Byway. I'm sorry? Yay. I said yay. Old Waterford Road is a historical rural roadway in Loudoun County.

[06:07:54] It provides access to the Waterford Historic District, which many of you know is a historical, national historical landmark. And I believe it is the only, or the first, for many years, it was the only village that was a national historic landmark. This road is a prime candidate for Virginia State Scenic Byway Program, which preserves roads and has aesthetic or cultural value, and that lead to or through places that have historical, natural, or recreational significance.

[06:08:24] A scenic byway designation can help to preserve the corridor's character and maintain Loudoun's rural landscape. That process starts when the locality, such as us and what we're doing now, approves a resolution, which is what this one is. And after that, it would move on to the state where VDOT and VDCR, also known as the Virginia Department of Conservation and Recreation, will evaluate the road for a byway designation.

[06:08:50] So that is essentially how simple this is. I know my staff has been working with some of the local folks and the Waterford Foundation and trying to remember who else has been involved in this. Rural Rustic Roads Committee, some individuals on that, to make this a scenic byway.

[06:09:08] And they have worked on the resolution, worked with some members from VDOT to get us to the point where this resolution is before us today. I don't know if I'm assuming everyone on this board or even on this dais has driven out a Waterford world. It is quite the scenic value if you have not.

[06:09:25] Obviously connects us to Waterford and all the historic significance that has over 300 years as we approach their 300-year anniversary. So I think this would be a great feather in the cap of what we're trying to do in the Waterford area by creating a scenic byway designation for Old Waterford Road.

[06:09:45] And I appreciate your support and answer any questions. Wonderful. Would you like to make a motion? I would. I move the Board of Supervisors adopt a resolution supporting the designation of Old Waterford Road as a Virginia state scenic byway and direct staff to coordinate with the Virginia Department of Transportation and other relevant agencies to advance the designation process second discussion any other discussion no further discussion uh mr mr sanes yes um is this road paved or graveled

[06:10:16] currently i believe most of it is graveled so is the intent to get this road paved no my understanding so no so my understanding for there'll be portions that probably have different For scenic

byways, isn't the intent to try to get more people to go to the road, to enjoy the road, so if it's...

[06:10:40] It'll be designated as that, right, as to what it is. I think it will also help in the preservation of the surrounding area. So is it to stop development? Is that what you're... No, it doesn't necessarily stop development. all right well like i said you know if you read some of the distinction for a scenic byway high scenic byway road is to drive traffic to the road and see the area and all that stuff so if it's a gravel road and well there's trust me if you've driven down old waterford road during rush hour there's plenty of traffic going down now i don't think it's going to get a lot worse honestly all right a lot of people using these roads all right well i'll just i was just curious because i was

[06:11:20] looking up the that's not an alternative uh uh for this i mean that's not the objective necessarily all right i'll support thank you just curious thank you okay um mr kirsten made the motion i seconded all the people who say aye aye any opposed that motion will pass 801 and now we have um a motion to reconsider and so what i'm going to have you do mr kirsch is make the motion to reconsider and then make the motion to reconsider.

[06:11:57] We can vote on that and then we make the motion we can talk about it but let's make the motion to, well make the motion to reconsider and talk about why you're reconsidering. Thank you Madam Chair. I move the Board of Supervisors reconsider its vote on April 21st, 2026 to deny Leji 2024-0037

[06:12:18] Cochrane Tech, ZMAP 2024-0012, Specs 2025-0025, Specs 2025-0029, Specs 2025-0034, Specs-2025-0054 and Specs-2025-0111.

[06:12:41] Motion made, sir. Second the motion. I will second the motion. Discussion on the motion. Mr. Kirshner. Yeah, this was a request made by the applicant, they, and I believe they've talked to a number of members of the board asking that, and of course this will come to the next motion, but the idea of the motion to reopen, or to reconsider, excuse me, not reopen, would be to ultimately send this back, once it's reopened there would be a motion that would follow to send it back to the Planning Commission for further consideration.

[06:13:17] My understanding, there were a number of comments made by the board and different aspects of the application that the applicant wanted to make changes in the application, but obviously after it was denied, we're not able to do that.

[06:13:35] These included, and I won't go into all the fine details, new end user brought in, better accommodation and county requests, there was a new site plan, there was some new architecture, LPAP proffers as well including those along the Goose Creek and Tollhouse Bridge and Horsepin Run Bridge so I don't know if that's all really part of the motion to reconsider but those are things they wanted to improve the application on by sending it back to the Planning Commission which will ultimately be the next one but this motion is just to reconsider and then to have

[06:14:10] that motion and I did vote to deny the application so I think I'm in a position to actually file that motion you are in a mission in a position to file that motion mr. make that motion attorney sorry yeah your honor mr mr. letourneau yeah just briefly if you may recall from that meeting there was a motion i think from supervisor umstead to send this to tuck no where was it back to a planning commission no her motion at the last meeting i believe was to send it to tuck not right remit to the planning commission

[06:14:47] okay no it was a defer right to defer it okay for another either way there was a motion to to halt this last time that failed and i said at that time that i wasn't sure if i could ever support the application however the application had changed so substantially that staff was not even able to review the new application and so i said at the time that i thought the board was in a precarious position to deny an application having not allowed the applicant to actually update the application. Now I know they got several extensions and all of that which is why the board voted that way and I also voted to deny the application based on what was in front

[06:15:26] of us but I continue to believe that the board would be on far sounder ground even if we are ultimately to deny if we allow the applicant to actually make the best version of the application that they intend to given the feedback that the board has given and also the change in circumstance with this project now having a contract purchaser that's coming in and making new commitments. So I will vote to reconsider and then I will vote to the next motion to remand back to the planning commission which is appropriate because it is essentially a different application at this point and then we will see from there whether we ever get to the point where this is

[06:16:03] something that I could support but I think the board is following a better process by allowing this to occur this way. Ms. Glass. Thank you, Madam Chair. It sounds like this was something that I wasn't here for, so I'd like to have the opportunity to review it and see what the applicant's changes are, and so I would support this motion. Ms. Brooksman. Just process-wise, Madam Chair, a motion to reconsider doesn't need to be added to the agenda at the beginning

[06:16:39] the meeting no okay and this these motions aren't required to be to us by noon like all the other motions um actually mr kirsten you should have sent these tests to noon now that i think about it um he did and i will take responsibility for that because he did tell me he did tell me um that he was going to do this in fact i knew two days before and i forgot to tell him to send that i forgot to tell him and he should have known to send it to the full board I didn't know, but I think everyone else did not know.

[06:17:12] That is my mistake and his mistake, and I will catch that the next time. Okay. I mean, okay. All right. Thank you. So this -- I would -- I'm going to support the motion, but this is my issue, and it's not with this application so much.

[06:17:33] It's just in general. What I see happening is these motions often for an industrial use, often for a data center come before us. And the initial application could be so much better and so much stronger.

[06:17:51] And so supervisors start asking for very reasonable things sometimes. And then the applicant goes, well, I need to have an extension. I need to have an extension. And by the time that happens a couple of times, I'm not doing that anymore. I'm done. So we get to a place where it almost is like the real work doesn't start to happen until we play this game a couple times. And there's no reason for that. And I'm not talking about this because truthfully, I'll say their name, the Pedestrian Group actually works with us very well. But just in general,

[06:18:26] I keep seeing this. My message to applicants is bring us to application, a decent application, the first time out you know don't if if you know that something can be done you at this point know what this board's going to ask for you know the design standards you know the setbacks you know the foliage that we're going to ask for around it you know what kind of what kind of you know you know what we're going to ask for so i don't think we need to do this dance anymore of if can they continue it well and then me saying well have they already and yes they did in public hearing but

[06:19:01] not for a full meeting. Can we just stop? Can we just stop? Bring us a clean application and let's get moving. Now to this application, you are correct because if the motion had to pass, the first motion had to pass, Ms. Umpstead's next motion would have been to send it to a public hearing, which would have made no sense to me. That's why I was thinking public hearing.

[06:19:26] When you have this many changes, back to the Planning Commission is where it should go because it's so many changes to the application. But a message to applicants just in general is stop doing this.

[06:19:42] And I don't say this often. We're getting frustrated with it. Stop doing it. Mr. Kirshner. Thank you, Madam Chair. I just want to reiterate what you've said. Obviously, this is Loudoun County. We're data center central. If you're going to bring that kind of application, I agree. should be a this should just kind of be a message to all applicants who have similar application bring us your best your brightest um to as as quickly as we can at the beginning i mean obviously we all have to have land use but if we're going to be loud and can we have to have the best possible um applicants and then we can make the decisions based upon um that and not on you know kind of

[06:20:19] piecemeal so i'm really glad at least in this case the applicant has changed we actually have now an end user now the Planning Commission can really get down to work and probably give us the best application possible and then we can reconsider it at that time. So thank you Madam Chair. All right. Mr. Kirsten make the motion I second the Onfield to say aye. Aye. Any opposed? That motion will pass with Mr. Crony being known. Madam Chair I'm gonna abstain on that.

[06:20:46] I mean Ms. Brickson abstaining and Mr. Turner being off the dais. Would you like to make a next motion yes madam chair i move the board of supervisors remand leji 20 24 0037 cochran tech cmac dash zero zero two four dash zero zero one two specs two zero two five dash zero zero two five specs dash two zero two five dash zero zero two nine dash specs first comment yeah specs dash zero two zero two five dash zero zero three four specs dash two zero two five zero zero five four and

[06:21:21] specs two zero two five zero one one one to the planning commission for public hearing on july 23rd 2026 to allow staff in the planning commission time to evaluate the the changes and the applicant that the applicant submitted and that the staff and that the staff said they did not have time to review prior to our vote on april 21st 2026. motion is made second by supervisor umstead discussion on the motion i think all has been said madam chair mr saints thank you madam chair i'm going to vote yes to send this back send this to the planning commission for reconsideration

[06:21:59] for the fact that the application did change hands change ownership group and and etc But, yes, Chair Randall is 100% correct. Applicants, I think you've followed these meetings.

[06:22:15] You've heard what folks are asking for. You've heard plenty from the community on things. There's no secret where some people are feeling on things nowadays, especially on data centers. So I would say heed Chair Randall's advice.

[06:22:33] Bring your best application. put your best foot forward from the beginning not with us going around and around and having conversations well can you do this well no I could but I can do this no I said this well how about this no I said this how about that okay well no can we defer because I'm doing my vote count it's not looking good for me can I okay well it's going to another meeting well it's still not looking good for me so can we do another deferral and all that stuff yes it's very frustrating and and puts people

[06:23:05] off. So again come with your best application for the first time around. So let this be a lesson please. I know you folks are watching and listening with thousands in attendance. So again I'll vote for this reconsideration and send it to the planning commission but that does no way shape or form mean that when it does come back I will support it. I will look at it and we'll go from there but I just want to put that out there this in no way means that I'm going to support it when it comes back just because I'm voting for tonight for the to send it to the Planning Commission. Thank you. I do want to be a

[06:23:42] little clearer. Ms. Brixman is completely right. I really we really really really want to have new motions by noon. You don't have to do this at the top of the meeting in addition to the agenda because he wasn't here to do in addition to the agenda but had he had it been sent out before noon, everyone would have known in addition to the agenda was coming. I have been pretty swamped to pass over the weekend getting ready for the Walrus meeting. So I did know it was

[06:24:16] coming. Mr. Kirshner did call me and tell me. And I should have said to him, make sure you sent it out. And he should have sent it out. But I did know it was coming. But I will be more careful. I will be consistent about that going forward. I will also say that it's not just data centers. We've had this happen on all kind of applications. Can you give

[06:24:44] us more attainable homes? I mean, these things should not happen. We had one application and it was for homes, and they asked me to defer it twice, and then they sold the ground to a data center, and it became a data center, and at that point, that's why I started saying I'm going to do one deferral, and that's it, because of that situation.

[06:25:10] So for Flex, for industrial, for residential, for data centers, for whatever it is, I can barely keep up with what I said yes to, I will defer, and what I didn't say yes to. So bring your A game the first time, and don't call me, because if you call me, you're probably going to get a total note from here on out.

[06:25:35] All right, Mr. Kirshner made the motion, Ms. Umstead seconded the motion. I'm closing. Oh, I'm sorry, I'm sorry, yes, close. Just because I want to always have the last word. Close, have the last word. No, and I apologize to Supervisor Brisbane, you're right, I should have had it in sooner, But after a 1.30 meeting and getting up at 5.30 this morning, I felt like a walrus, moving very slow.

[06:25:59] And so was my thought process, so I didn't get it to you by noon. But thank you. Appreciate it. Bye. You're welcome. All right, all in favor, please say aye. Aye. Any opposed? That motion will pass with one abstention. So 611 with one abstention, Mr. Crony.

[06:26:18] And no, that's not, we've already done this. And one, yeah, one, don't help me. One up the dais and one no. Thank you very much. And we are in recess, and we are in recess until Wednesday.

[06:26:36] Thank you.



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